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Ref No.

Dated - 01.03.17

To

1. The Ld. Govt. Pleader, High Court, Calcutta.

2. The Director General of Police, West Bengal, Lalbazar, Kolkata - 700 001.

3. The Superintendent of Police, Murshidabad, P.O. & P.S. - Berhampore, Dist -
Murshidabad, Pin - 742101.

Dear Sir (s),

In Re.: W.P. No. 5930(W) of 2017.

Santosh Halder & Anr.

Petitioners.

Versus

The State of West Bengal & Ors.

Respondents.

= = =

Enclosed please find herewith a copy of the aforesaid writ petition which will come up for hearing before His Lordship the Hon'ble Justice Joymalya Bagchi on 6.3.17 or so soon thereafter as and when the business of the Court shall permit.

Please acknowledge the same and do attend.

Yours faithfully,

Gautam Banerjee
Advocate

Encl: As stated above.

District : Murshidabad.

In the High Court at Calcutta
Constitutional Writ Jurisdiction

Appellate Side

W.P. No. 5930 (W) of 2017.

Subject matter relating to :

The Police India

Under Group "I" Head (X) of

The Classification of List ;

Cause Title

In the matter of:

Santosh Halder & Anr

..... Petitioners

Versus

State of West Bengal & Ors.

..... Respondents

Advocate-on-Record:

Mr. Gautam Banerjee
Advocate
High Court, Calcutta,
Bar Association, Room No.4

District : Murshidabad.

In the High Court at Calcutta
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In the matter of:

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Index

Sl. No.	Particulars	Annexure	Page No
1	Writ Petition		1 - 30
2	Copy of petition dt. 5.9.16 filed by the wife of the petitioner no. 2 being Misc. Case No. 244 (d)/2016.	"P-1"	- 31
3	Copy of First Information Report & the forwarding report, seizure list.	"P-2"	32-42
4	Copy of orders dt. 6.9.16 in connection with N.D.P.S Case No. 236/2016 .	"P-3"	43-44
5	Copy of order dt. 9.9.16 passed by the Ld. Judge, Special Court	"P-4"	45-48

	under N.D.P.S Act, Murshidabad in N.D.P.S Case No. 236/2016.		
6	Copy of order dt. 23.9.16 passed by the Ld. Judge, Special Court, NDPS Act, Berhampore, Murshidabad and released order dt. 26.9.16.	"P-5"	49-53
7	Copy of the said F.I.R and the order dt. 8.11.16 & 24.11.16 passed by the Chief Judicial Magistrate, Murshidabad	"P-6"	54-59
8	Copy of the said F.I.R in connection with Berhampore P.S. Case No. 394 of 2016 dt. 5.5.16 under Sections 341/326/307 and 25/ 27 Arms Act (G.R. No. 1943 of 2016) and the order dt.2.11.16	"P-7"	60-62
9	Copy of the said FIR being Berhampore P.S. Case No. 1187 of 2014 dt. 11.12.14 under Sections 147/149/447/ 325/307/427 of the Indian Penal Code & 3 P.D.P.P. Act and 9 M.P.O. Act and the order dt. 2.11.16 passed by the Ld. Sessions Judge, Mursdhidabad (I/C)	"P-8"	63-65
10	Copy of the order dt. 05.10.16 for jail interrogation and a copy of the order dt. 05.10.16 whereby the petitioner no. 2 was shown arrest passed by the C.J.M., Murshidabad.	"P-9"	- 66
11	Copy of the FIR dt. 351 of 2016 dt. 19.5.16 under Section 302/201/34 of the Indian Penal Code (G.R. 955 of 2016) and the order dt. 9.1.17 passed by the Ld. A.C.J.M., Kandi Murshidabad .	"P-10"	67-73
12	Copy of the FIR no. 360 of 2016 dt. 24.7.16 and the order dt.16.1.17 & the order dt. 19.1.17 passed by the Ld. Chief Judicial Magistrate, Murshidabad	"P-11"	74-78
13	Copies of the treatment papers of the petitioner no. 2	"P-12"	79-80

List of Dates

2008	Petitioner no. 2 being a social worker elected from Ward No.25 of Berhampore Municipality of the ticket of Indian National Congress party.
4.9.16	Petitioner no. 2 was going to Kolkata by Lalgola Passenger and he was apprehended by Rejinagar P.S.
5.9.16	Wife of the petitioner no. 2 filed a petition u/s 57 of Cr.P.C being Misc. Case No. 244(d)/16 for production of the petitioner before the Court of C.J.M., Murshidabad.
6.9.16	A case being Lalgola P.S. Case No.337/16 dt. 6.9.16 initiated against the petitioner no.2 u/s 21 (c) of NDPS act and produced before the Ld. Special Judge, NDPS Act..
9.9.16	The bail prayer was rejected in connection with the said case.
19.9.16	Petitioner no. 2 was shown arrested in connection with Berhampore P.S. Case No. 655/15 dt. 25.11.15 u/s 302/326/307/120B IPC and 25/ 27 Arms Act and also in connection with Berhampore P.S. Case No. 394/16 dt. 5.5.16 u/s 341/326/307 IPC and 25/ 27 Arms Act.
23.9.16	Petitioner no. 2 was released on bail by the Ld. Spl. Judge in the case under NDPS Act.
5.10.16	Prayer made by I.O, before C.J.M, Murshidabad for jail interrogation of petitioner no.2 which was allowed. On that date, he was shown arrested in connection with Berhampore P.S. Case No. 155/16 dt. 20.2.16 u/s 147/148/149/324/325/302 of IPC and 25/ 27 Arms Act.
6.10.16	Petitioner no. 2 was shown arrested in connection with Berhampore P.S. Case No. 1187/14 dt. 11.12.14 u/s 147/149/ 447/325/307/427 IPC, 3 PDPP Act and 9 MPO Act.
2.11.16	Petitioner no. 2 was released on bail in connection with Berhampore P.S. Case No. 394/16 and 1187/14.
8.11.16	Petitioner no. 2 was taken on remand showing him arrest in connection with Berhampore P.S. Case No. 1086/16 dt. 8.11.16 u/s 25(1)(a) of Arms Act.
24.11.16	Petitioner no. 2 was released on bail in connection with the said case under Arms Act.

18.12.16	Petitioner no. 2 was released on bail in connection with case no. 655/15 of Berhampore P.S.
2.1.17	Petitioner no. 2 was shown arrested in connection with Kandi P.S. Case No. 351/16 dt. 19.5.16 and Ld. A.C.J.M. , Kandi fixed his production on 9.1.17 and called for CD on the said date.
4.1.17	Petitioner no. 2 released on bail in connection with Berhampore P.S. Case NO. 155/16
9.1.17	Ld. A.C.J.M. , Kandi, discharged the petitioner no. 2 from Kandi P.S. Case No. 351/16 with detailed observations.
16.1.17	Again, petitioner no. 2 was shown arrest in connection with Beldanga P.S. Case No. 360/16 dt. 24.7.16 us/147/148/149/302, 25/ 27 Arms Act and 3/ 4 E.S. Act.
18.1.17	Petitioner no. 2 was admitted at Murshidabad Medical College and Hospital for his false implication in several cases and the torture inflicted thereby upon him.

Point of Law

That the petitioner no. 2 was/is not an FIR named accused in many of the cases, such as, (i) Berhampore P.S. Case No. 1187 of 2014 dt. 11.12.14 under sections 147/149/447/325/307/427 of the Indian Penal Code and 3 P.D.P.P. Act and 9 M.P.O. Act , (ii) Berhampore P.S. Case No. 155 of 2016 dt. 20.2.16 under Sections 147/148/149/324/325/302 of the Indian Penal Code and 25/ 27 Arms Act, (iii) Kandi P.S. Case No. 351/16 dt. 19.5.16 under Section 302 of the Indian Penal Code and (iv) Beldanga P.S. Case No. 360/16 dt. 24.7.16 under Sections 147/148/149/302 of the Indian Penal Code and 25/ 27 Arms Act and 3/ 4 E.S. Act. But he has been implicated in the aforesaid cases by the police authorities falsely, illegally and motivatedly and in one of the cases i.e. Kandi P.S. Case No. 351/16 dt. 19.5.16, the petitioner no. 2 was discharged from the said case, which is evident from Annexure – “P-10” of this writ petition. So, it is evident that the police authorities are bent upon curtailing the personal liberty of the petitioner no.2 by confining him in custody by hook or crook and thereby infringing his fundamental rights guaranteed under Article 21 of the Constitution of India which ought to be corrected by this Hon’ble Court by way of judicial review.

District : Murshidabad

In the High Court at Calcutta

Constitutional Writ Jurisdiction

Appellate Side

W.P. No. 5930(W) of 2017.

In the matter of : -

An Application under Article 226 of
the Constitution of India ;

A n d

In the matter of : -

An application for a writ of or writs in
the nature of Mandamus and/or
Certiorari and/or Prohibition and/or
any other appropriate writ or writs,
order or orders, direction or
directions;

A n d

In the matter of : -

Overt act on the part of the police
authorities whereby they have not

only harassed and hackled the petitioners by adopting various illegal means which is malafide, arbitrary and in colourable exercise of powers ;

A n d

In the matter of : -

Illegal activities and/or over act on the part of the police authorities whereby the fundamental rights of the petitioners have been snatched away forcibly by the said authorities ;

A n d

In the matter of : -

Illegal activities and/or overt act on the part of the police authorities whereby they have illegally curtailed the liberty of the petitioner no. 2 by arresting him and kept him in custody by implicating him in several police cases falsely and motivatedly ;

A n d

In the matter of : -

1 . Santosh Halder, Son of Late
Kailosh Halder.

2 . Hiru Halder, Son of Santosh
Halder.

Both 1&2 residing at 74/44
Saidabad , 100 , Kumar Durganath
Lane, Berhampore, P.O. & P.S. –
Berhampore, District – Murshidabd,
Pin – 742101.

..... Petitioners.

Versus

1 . The State of West Bengal, Service
through the Secretary, Department of
Home, Government of West Bengal,
Nabanna, 325 Sarat Chatterjee Road,
Howrah – 711102.

2 . The Director General of Police,
West Bengal, Lalbazar, Kolkata – 700
001.

3 . The Superintendent of Police,
Murshidabad, P.O. & P.S. -
Berhampore, Dist - Murshidabad, Pin
- 742101.

..... Respondents.

To

The Hon'ble Mrs. Nishita Mhatre, Acting Chief Justice and
Her Companion Justices of the said Hon'ble Court.

The humble petition on behalf of
the petitioners above named -

Most Respectfully Sheweth :

1 . That the petitioners are the law abiding citizens of India,
permanently residing at the address mentioned in the Cause
Title here in above.

2. That your petitioners state that the petitioner no. 2 is a
social worker and he is a supporter of Indian National
Congress (INC) Party and was elected as councilor to the
Berhampore Municipality from Ward No. 25 of the said
municipality in the previous term i.e. in the year 2008.

Your petitioners crave leave to produce the said certificate of petitioner no. 2 at the time of hearing, if necessity arises.

3 . That on 4.9.16 when the petitioner no. 2 was going to Kolkata by Lalgola Passenger at that time, he was apprehended by some police personnel of Rejinagar Police Station, Murshidabad but he was not produced before any court and upon coming to know of the said facts, the wife of the petitioner no. 2 on 5.9.16 filed a petition under Section 57 of Cr.P.C. being Misc. Case No. 244 (d)/2016 for the production of petitioner no. 2 before the Learned Chief Judicial Magistrate, Murshidabad.

A copy of the said petition dt. 5.9.16 filed by the wife of the petitioner no. 2 being Misc. Case No. 244 (d)/2016 is annexed herewith and marked as Annexure – “P-1” .

4 . Your petitioners state that thereafter a case was lodged against the petitioner no. 2 herein being Lalgola P.S. Case No. 337/2016 dt. 6.9.16 under Section 21 (C) of N.D.P.S. Act.

Copy of the First Information Report & the forwarding report, seizure list are annexed herewith and marked as Annexure – “P-2” collectively.

5 . That on 6.9.16 the petitioner no. 2 was produced before the Ld. Judge, Special Court under N.D.P.S Act , Murshidabad in connection with the N.D.P.S Case No. 236/ 2016 .

On the same day, the Ld. Judge, Spl. Court under NDPS Act, Murshidabad in Charge, allowed police remand of three days.

Copy of the orders dt. 6.9.16 in connection with N.D.P.S Case No. 236/2016 is annexed herewith and marked as Annexure – “P-3” collectively.

6 . That on 9.9.16 the petitioner no. 2 was produced from police custody in connection with LaLgola P.S. Case No. 337 of 2016 dt. 6.9.16 under Section 21 (c) of NDPS Act, i.e. NDPS Case No. 236 of 2016 and the bail prayer of the petitioner no.2 was rejected by the Ld. Judge, Special Court, under N.D.P.S Act, Murshidabad.

It is pertinent to mention here that there are some observations made by the Ld. Court in the said order wherefrom it appears that serious doubt was cast by the Ld. Judge in connection with the veracity of the case against the petitioner no. 2 and the petition under Section

57 of Cr.P.C and the xerox copy of railway ticket by which the petitioner no. 2 was going towards Kolkata on 4.9.16 was kept with the case record for future reference.

A copy of the said order dt. 9.9.16 passed by the Ld. Judge, Special Court under N.D.P.S Act, Murshidabad in N.D.P.S Case No. 236/2016 is annexed herewith and marked as Annexure – “P-4”.

7. Your petitioners state that on 23.9.16 the Ld. Judge, Special Court, N.D.P.S Act, Berhampore, Murshidabad, passed an elaborate order in connection with LaLgola P.S. Case No. 337 of 2016 dt. 6.9.16 under Section 21 (c) of NDPS Act, i.e. NDPS Case No. 236 of 2016 and granted bail to the petitioner no. 2 herein and the release order was issued on 26.9.16.

Copy of the order dt. 23.9.16 passed by the Ld. Judge, Special Court, NDPS Act, Berhampore, Murshidabad and released order dt. 26.9.16 are annexed herewith and marked as Annexure - “P-5” collectively.

8. That in the meantime, on 19.9.16 the petitioner no.2 was shown arrested in connection with Berhampore Police Station Case No. 655/2015 dt.25.11.15 under Sections 302/326/307/120B of the Indian Penal Code and 25/ 27 Arms Act (G.R. No. 4793 of 2015). In the said case he was released on bail on 18.12.16.

It is worthwhile to mention here that in the aforesaid case the police authorities took remand to the petitioner no. 2 and putting arms cases against him showing arrest on 8.11.16 in connection with Berhampore Police Station Case No. 1086 of 2016 dt. 8.11.16 under Sections 25(1) (a) of Arms Act (G.R. No. 5336 of 2016) and in connection with the said case the petitioner no. 2 was released on bail on 24.11.16.

Copy of the said F.I.R and the order dt. 8.11.16 & 24.11.16 passed by the Chief Judicial Magistrate, Murshidabad, in connection with the aforesaid case are annexed herewith and marked as Annexure – “P-6” collectively.

9. Your petitioners state that 19.9.16 the petitioner no. 2 was shown arrested in connection with Berhampore P.S. Case No. 394 of 2016 dt. 5.5.16 under Sections 341/326/307

and 25/ 27Arms Act (G.R. No. 1943 of 2016) and in connection with the said case, the petitioner no. 2 was released on 02.11.16.

Copy of the said F.I.R in connection with Berhampore P.S. Case No. 394 of 2016 dt. 5.5.16 under Sections 341/326/307 and 25/ 27 Arms Act (G.R. No. 1943 of 2016) and the order dt.2.11.16 are annexed herewith and marked as Annexure – “P-7” collectively.

10 . That in the meantime the petitioner no. 2 was shown arrested on 6.10.16 in connection with Berhampore P.S. Case No. 1187 of 2014 dt. 11.12.14 under Sections 147/149/447/325/307/427 of the Indian Penal Code & 3 P.D.P.P. Act and 9 M.P.O. Act . In the said case the petitioner no. 2 is not FIR named accused and he was released on bail on 02.11.16.

Copy of the said FIR being Berhampore P.S. Case No. 1187 of 2014 dt. 11.12.14 under Sections 147/149/447/ 325/307/427 of the Indian Penal Code & 3 P.D.P.P. Act and 9 M.P.O. Act and the order dt. 2.11.16 passed by the Ld. Sessions Judge, Mursdhidabad (I/C) are annexed herewith and marked as Annexure – “P-8” collectively.

11 . That on 05.10.16 the Investigating Officer made prayer for jail interrogation of the petitioner no. 2 before the Ld. Chief Judicial Magistrate, Murshidabad, and such prayer was allowed. On the same date, the petitioner was shown arrested in connection with Berhampore P.S. Case No.155 of 2016 dt. 20.02.16 under Sections 147/148/149/324/325/302 of the Indian Penal Code and 25/ 27 Arms Act (G.R. No. 758 of 2016).

It is pertinent to mention here that the petitioner no. 2 is not an F.I.R named accused in the aforesaid case and he got bail on 04.01.17.

A copy of the order dt. 05.10.16 for jail interrogation and a copy of the order dt. 05.10.16 whereby the petitioner no. 2 was shown arrest passed by the C.J.M., Murshidabad, are annexed herewith and marked as Annexure – “P-9” and your petitioners crave leave to produce the order dt. 04.01.17 at the time of hearing if necessity arises.

12 . Your petitioners state that the petitioner no. 2 was shown arrested on 2.1.17 and production was prayed for on 9.1.17 in connection with Kandi P.S. Case No. 351 of 2016 dt.19.5.16 under Section 302 of the Indian Penal Code (G.R.

955 of 2016). That on 2.1.17 the order was passed by the Ld. A.C.J.M., Kandi, Murshidabad for production and called for C.D. and by an order dt. 9.1.17, the petitioner no. 2 was discharged from the instant case by the Ld. Additional Chief Judicial Magistrate, Kandi, Murshidabad, as there were no materials against the petitioner no. 2 herein and the said order was also sent by the Ld.A.C.J.M. to S.P., Murshidabad for his information and bringing into his notice about the investigation done by the police authority under his authority.

Copy of the FIR dt. 351 of 2016 dt. 19.5.16 under Section 302/201/34 of the Indian Penal Code (G.R. 955 of 2016) and the order dt. 9.1.17 passed by the Ld. A.C.J.M., Kandi Murshidabad are annexed herewith and marked as Annexure – “P-10” collectively.

13 . Your petitioners state that in as much as the petitioner no. 2 has been released on bail in all the aforesaid cases, again he was shown arrested on 16.1.17 in connection with Beldanga P.S. Case No. 360 of 2016 dt. 24.7.16 under sections 147/148/149/302 of the Indian Penal Code and 25/ 27 Arms Act and 3/ 4 E.S. Act (G.R. 3512 of 2016).

In the aforesaid case, the petitioner no. 2 is not an FIR named accused and he has been falsely implicated in the aforesaid case.

A copy of the said FIR no. 360 of 2016 dt. 24.7.16 and the order dt.16.1.17 & the order dt. 19.1.17 passed by the Ld. Chief Judicial Magistrate, Murshidabad in connection with the aforesaid case are annexed herewith and marked as Annexure – “P-11” collectively.

14 . Your petitioners state that due to false implication of the petitioner no. 2 in various criminal cases and due to the torture perpetrated by the police authorities on him, the petitioner no. 2 fell seriously ill and he was treated several times in the jail hospital.

Copies of the treatment papers of the petitioner no. 2 are annexed herewith and marked as Annexure – “P-12”.

15 . That your petitioners state and submit that it is evident from Annexure – “P-1” to “P-11” that there are overt acts on the part of the police authorities whereby they have not only harassed and hackled the petitioners specially the petitioner no. 2 herein by adopting various illegal means but have also

curtailed the personal liberty to the petitioner no. 2 in an arbitrary and malafide manner by misusing the powers vested in them by law.

16 . Your petitioners state and submit that it is evident from facts and circumstances narrated in the instant writ petition that due to the illegal activities and/or overt acts on the part of the police authorities, the fundamental right to life and liberty of the petitioner no. 2 has been taken away forcibly by the said authorities. As such, the interference of the Hon'ble Court is very much warranted in the present facts and circumstances.

17. Your petitioners state and submit that it evident from the Annexure - "P-1 to "P-11" that the illegal activities and overt acts on the part of police authorities that they curtailed the liberty of the petitioner no.2 by arresting him repeatedly and taking him in custody by implicating him in several police cases falsely and motivatedly and as such, the interference of the Hon'ble Court is very much warranted.

18 . Your petitioners state and submit that it is evident from Annexure - "P-1" of the writ petition which has been filed by the wife of the petitioner no. 2 before the Ld. C.J.M.,

Murshidabad and the order dt. 9.9.16 and 23.9.16 respectively passed by the Ld. Judge, Special Court, N.D.P.S Act, Berhampore, Murshidabad, being Annexure – “P-4 & “P-5” of this writ petition that there are some observations made by the Ld. Judge in both the orders wherefrom it can safely be said that the petitioner no. 2 has been falsely implicated in connection with LaLgola P.S. Case No. 337 of 2016 dt. 6.9.16 under Section 21 (c) of NDPS Act, i.e. NDPS Case No. 236 of 2016 which is a glaring example of the malafide and of ill motive on the part of the police authorities and as such, the interference of the Hon’ble Court is very much warranted.

19 . Your petitioners state and submit that the petitioner no. 2 was/is not an FIR named accused in many of the cases, such as, (i) Berhampore P.S. Case No. 1187 of 2014 dt. 11.12.14 under sections 147/149/447/325/307/427 of the Indian Penal Code and 3 P.D.P.P. Act and 9 M.P.O. Act , (ii) Berhampore P.S. Case No. 155 of 2016 dt. 20.2.16 under Sections 147/148/149/ 324/325/302 of the Indian Penal Code and 25/ 27 Arms Act, (iii) Kandi P.S. Case No. 351/16 dt. 19.5.16 under Section 302 of the Indian Penal Code and (iv) Beldanga P.S. Case No. 360/16 dt. 24.7.16 under Sections

147/148/149/302 of the Indian Penal Code and 25/ 27 Arms Act and 3/ 4 E.S. Act. But he has been implicated in the aforesaid cases by the police authorities falsely, illegally and motivatedly and in one of the cases i.e. Kandi P.S. Case No. 351/16 dt. 19.5.16, the petitioner no. 2 was discharged from the said case, which is evident from Annexure – “P-10” of this writ petition. So, it is evident that the police authorities are bent upon curtailing the personal liberty of the petitioner no.2 by confining him in custody by hook or crook and thereby infringing his fundamental rights guaranteed under Article 21 of the Constitution of India which ought to be corrected by this Hon’ble Court by way of judicial review.

20 . Your petitioners state and submit that one after another re-arrest of the petitioner no. 2 is discriminatory in nature and in blatant violation of Article 14 of Constitution of India.

21 . Your petitioners state and submit that the impugned acts and/or action on the part of the police authorities is motivated on behalf of the present ruling political party to finish the hegemony of a party in the district of Murshidabad to

which the petitioner no. 2 belongs and as such the petitioner no.2 was falsely implicated in several cases so that he cannot move freely and pursue his lawful political activities.

22 . Your petitioners state that it is well settled that an accused enlarged on bail by Court cannot be rearrested soon thereafter without apprising such Court specially when no disclosure was made to that Court before it granted bail that investigation for any other offence was then pending against the accused.

23 . Your petitioners state that the Respondent police authorities are bound to disclose all criminal proceedings pending against the petitioner no. 2 and cannot come up with a new proceeding every time when bail is granted in connection with another proceeding.

24 . Your petitioners state that the respondent police authorities are creatures of statute and their powers and functions being circumscribed by statute, it is incumbent upon them to act in accordance with law. In the present case the respondent police authorities have acted without jurisdiction and/or in excess of jurisdiction vested in them by law.

25 . Your petitioners state that the respondent police authorities are neither empowered nor authorized to interfere with the personal liberty of the petitioner no. 2 and in the instant case the respondent police authorities have overstepped their jurisdiction and their impugned acts, actions and/or inactions are wholly mala fide and without jurisdiction and consequently perverse.

26 . Your petitioners state that the culpable inaction on the part of the Senior Police authorities in controlling the arbitrary and illegal actions of the local police authorities amounts to failure of exercise of jurisdiction vested in them by law and ought to be corrected by way of judicial review.

27 . The culpable action and/or inaction of the Respondent police authorities has resulted in gross violation of the petitioners' rights guaranteed under Articles 14 and 21 of the Constitution of India.

28 . The culpable action and/or inaction of the Respondent authorities in falsely implicating the petitioner no. 2 in several criminal cases thereby keeping him in custody is otherwise arbitrary, illegal, whimsical, unlawful, in colourable exercise of power and ought to be corrected by way of judicial review.

29 .That being aggrieved by and/or dissatisfied with the over act and arbitrary action on the part of the police authorities whereby they are harassing the petitioners, particularly, the petitioner no. 2 by implicating him in several false criminal cases with a view to keep the petitioner no. 2 in custody without any rhyme or reason, your petitioners beg to move this application on the following amongst other :

G r o u n d s

- I For that it is evident from Annexure - "P-1" to "P-11" that there are overt act on the part of the police authorities whereby they have not only harassed & hackled the petitioners specially the petitioner no. 2 herein by adopting various illegal means which is not only illegal and in case of bonafide citizens of India but also bad in law whereby curtailed the personal liberty to the petitioners.

- II For that it is evident from the instant writ petition that due to the illegal activities and/or overt acts on the part of the police authorities whereby the

fundamental rights of the petitioners have been snatched away forcibly by the said authorities. As such, the interference of the Hon'ble Court is very much necessary.

III For that it evident from the Annexure – “P-1 to “P-11” that the illegal activities and overt acts on the part of police activities whereby they curtailed the liberty of the petitioner no.2 by arresting him and taking him in custody by implicating him in several police cases falsely and motivatedly and as such, the interference of the Hon'ble Court is very much warranted.

IV For that it is evident from Annexure – “P-1” of the writ petition which has been filed by the wife of the petitioner no.2 before the Ld. C.J.M. , Murshidabad and the order dt. 9.9.16 and 23.9.16 respectively passed by the Ld. Judge, Special Court, N.D.P.S Act, Berhampore, Murshidabad, being Annexure – “P-4 & “P-5” of this writ petition that there are some observations made by the Ld. Judge in both the

orders wherefrom it can safely be said that the petitioner has been falsely implicated in connection with LaLgola P.S. Case No. 337 of 2016 dt. 6.9.16 under Section 21 (c) of NDPS Act, i.e. NDPS Case No. 236 of 2016 which is glaring example of ill motive on the part of the police authorities.

V For that the petitioner no. 2 was/is not an FIR named accused in some cases, such as, (i) Berhampore P.S. Case No. 1187 of 2014 dt. 11.12.14 under sections 147/149/447/325/307/427 of the Indian Penal Code and 3 P.D.P.P. Act and 9 M.P.O. Act, (ii) Berhampore P.S. Case No. 155 of 2016 dt. 20.2.16 under Sections 147/148/149/ 324/325/302 of the Indian Penal Code and 25/ 27 Arms Act, (iii) Kandi P.S. Case No. 351/16 dt. 19.5.16 under Section 302 of the Indian Penal Code and (iv) Beldanga P.S. Case No. 360/16 dt. 24.7.16 under Sections 147/148/149/302 of the Indian Penal Code and 25/ 27 Arms Act and 3/ 4 E.S. Act. But he has been implicated in the aforesaid cases by the police

authorities illegally and motivatedly and in one of the cases i.e. Kandi P.S. Case No. 351/16 dt. 19.5.16 the petitioner no. 2 was discharged from the said case, which is evident from Annexure – “P-10” of this writ petition.

- VI For that one after another re-arrest of the petitioner no. 2 is illegal and discriminatory in nature in blatant violation of Article 14 of Constitution of India.
- VII For that it is evident that the act and/or action on the part of the police authorities is on behalf of the present ruling political party to finish the hegemony of a party in the district of Murshidabad to which the petitioner no. 2 belongs.
- VIII For that the above acts of action and/or non action on the part of the Respondent police authorities has resulted in grave injustice to the petitioners.
- IX For that the respondent police authorities are acting illegally and in a biased manner so as to harass the petitioner no. 2 so that he is unable to come out of custody and lead a normal life.

- X For that the prospect of complete injustice being done to the petitioner no. 2 cannot be ruled out.
- XI For that the respondent police authorities are neither empowered nor authorized to interfere with the petitioner no.2's life and liberty and in the instant case the respondent police authorities have overstepped their jurisdiction and their impugned acts, actions and/or inactions are wholly malafide and without jurisdiction and consequently perverse.
- XII For that it is well settled that an accused enlarged on bail by Court cannot be rearrested soon thereafter without apprising such Court specially when no disclosure was made to that Court before it granted bail that investigation for any other offence was then pending against the accused.
- XIII For that the Respondent police authorities are bound to disclose all criminal proceedings pending against the petitioner no. 2 and cannot come up with a new proceeding every time when bail is granted in connection with another proceeding.

- XIV For that the respondent police authorities are creatures of statute and it is incumbent upon them to act in accordance with law.
- XV For that the culpable inaction on the part of the Senior Police authorities in controlling the arbitrary and illegal actions of the local police amounts to failure of exercise of jurisdiction vested in them by law and ought to be corrected by way of juridical review.
- XVI For that the illegal and arbitrary actions on the part of the respondent police authorities has resulted in deprivation of the petitioner's fundamental rights guaranteed under Articles 14 and 21 of the Constitution of India.
- XVII For that the Respondent police authorities have acted without jurisdiction and/or in excess of jurisdiction vested in them by law.
- XVIII For that the culpable action and/or inaction of the Respondent authorities by falsely implicating the petitioner no. 2 in several criminal cases is otherwise

arbitrary, illegal, whimsical, unlawful, in colourable exercise of power and ought to be corrected by way of juridical review.

XIX For that the actions and/or inaction of the Respondent police authorities is arbitrary, whimsical, malafide, in colourable exercise of power, without any basis and/or otherwise bad in law.

30 . That in the above facts and circumstances any further demand for justice from the Respondents will be an idle and empty formality and the same may be dispensed with.

31 . The records relating to the instant Writ petition are lying within the aforesaid jurisdiction of this Hon'ble Court.

32 . No other application has been filed by the petitioners on the self same facts and/or cause of action before any other Court or at all.

33 . Your petitioners state that unless orders are passed as prayed for your petitioners will suffer irreparable loss , injury and prejudice.

34 . The balance of convenience and/or inconvenience is

entirely in favour of the petitioners and against the Respondents.

35 . Your petitioners have no other alternate, adequate, effective and efficacious remedy but to move this Hon'ble Court under its extraordinary jurisdiction and the prayers made herein if granted will give your petitioners full and complete relief.

36 .That this application is made bonafide and for the ends of justice.

In the premises your Petitioners most humbly pray that Your Lordships may graciously be pleased to pass the following orders :-

(a) A Writ of and/or order and/or direction in the nature of Mandamus do issue commanding the respondent police authorities and/or each of them, their servants, agents or assigns, to act and proceed in

accordance with law and to discharge their duties as provided under the Code of Criminal Procedure, Police Act, 1861, Police Regulations of Bengal, 1943 and other Police Acts ;

(b) A Writ of and/or order and/or direction in the nature of Mandamus do issue commanding the concerned police respondents and/or each of them, their servants, agents or assigns, to disclose all criminal proceedings pending against the petitioner no. 2 and to stop harassing the petitioner no. 2 and implicating the petitioner no. 2 in false criminal cases so as to ensure that he is able to lead a normal life in his locality ;

(c) A Writ of and/or order and/or direction in the nature of Prohibition do issue prohibiting and restraining the Respondents and/or their servants, agents or assigns from harassing the petitioner no. 2 in any manner whatsoever including implicating him in false criminal cases ;

(d) A Writ of and/or order and/or direction in the nature of Certiorari do issue calling upon the respondents and/or each of them, their servants, agents or assigns to certify and transmit to this Hon'ble Court all the records culminating in implication the petitioner no. 2 in false criminal cases so that after perusal of

the same, necessary orders may be passed and conscionable justice be done ;

(d) Rule Nisi in terms of prayers (a), (b), (c) and (d) above ;

(f) An order of mandatory injunction be passed directing the respondents and/or each of them, their servants, agents or assigns, to disclose all criminal proceedings pending against the petitioner no. 2 and to stop harassing the petitioner no. 2 and implicating the petitioner no. 2 in false criminal cases so as to ensure that he is able to lead a normal life in his locality ;

(g) An order of injunction be passed restraining the Respondents and/or their

servants, agents or assigns from harassing the petitioner no. 2 in any manner whatsoever including implicating him in false criminal cases ;

(h) Ad-interim order in terms of prayers (f) and (g) above ;

(i) Costs of and incidental to this application be paid by the respondents ;

(j) Such further and/or other order or orders be passed and/or direction or directions be given as to this Hon'ble Court may deem fit and proper ;

And your petitioners, as in duty bound, shall ever pray.

Affidavit

I, Santosh Halder, Son of Late Kailash Halder, aged about 28 years, by faith - Hindu, by Occupation - *culit*, residing at 74/44 Saidabad, 100, Kumar Durganath Lane, Berhampore, P.O. & P.S. - Berhampore, District - Murshidabd, Pin - 742101, do hereby solemnly affirm and say as follows :

1. That I am the petitioner no. 1 of the instant writ petition and as such, I am well acquainted with the facts and circumstances of the case and I am authorized by the petitioner no.2 to sign and affirm this affidavit.

2. That the statements made in paragraph nos. 1-14 are true to my knowledge and those made in paragraph nos. 15-35 are my humble submissions before this Hon'ble Court.

Prepared in my office

A. G. Banerjee
Advocate

M. S. Halder
The deponent is known to me.

Clerk to Mr. *S. K. B.*
S. N. M.
Advocate

Solemnly affirmed before me

On this the *1st* day of March, 2017.

All annexures are legible

Advocate

Commissioner

Anna - 'P'

petition v/s 57 8r.

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7-10-2020

Get me the 70-600-800-800-800

(3) 2017

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the answer is
the answer is

annexure.....
 to in paragraph.....
 foregoing Petition affirmed
 by.....
 on this..... Day of.....

Commissioner of Affidavit
High Court, Appellate Sur
Colombia

- 32 -

Answer - 'P2'



Petr no. 16 cr dt 6th Jan'17, 10th Jan'17, 17th Jan'17,
21st Jan'17, 21st Jan'17

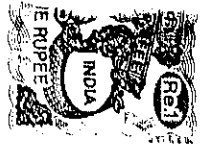
N.D.P.S. 236/16

Seen, *Arshi Sharma*
Sd/- *Illegible* *Roy*
Judge, Spl. Court, Under
N.D.P.S. Act, Murshidabad.
6.9.16 i/c.

FIRST INFORMATION REPORT

(Under Section 154 Cr.P.C.)

1. Dist. Murshidabad. P.S. Lalgola year 2016 F.I.R. No. 337/16.
Date : 06.09.2016.
2. (i) Act: N.D.P.S. Sections 21(c). (ii) Act...x...Sections...
(iii) Act...x....Sections....x...(iv) Other Acts and Sections..
3. (a) Occurrence of Offence Day: Tuesday. Date From: ...x...
Date to : 06.09.16.
Time period...x...Time From.....Time to...x...
- (b) Information received at P.S. Date: 06.09.16. Time: 01.55 hrs.
- (c) General Diary reference: Entry No(s): 230 Time: 05.45 hrs.
4. Type of information: written
5. Place of Occurrence: (a) Direction and Distance from P.S. 10 K.M. South East. Beat No. Anchal No. XI. J.L. No. 62
(b) Address: Jasaitala More under Lalgola P.S. over Berhampore Jangipur State High Way.
(c) Incase outside limit of the Police Station then the Name of the P.S.x.....District....x.....
6. Complainant/Informant :
(a) Name : S.I. Utpal Ghosh.
(b) Father's/Husband's name : ...x.....



:: 2 ::

- (c) Date/Year of Birth....x...(d) Nationality: Indian.
- (e) Passport No....x...Date of Issue...x...Place of Issue...x...
- (f) Occupation: Service in W.B.P.
- (g) Address: Attached to Lalgola P.S. Murshidabad.
7. Details of known/suspected/unknown accused with full particulars (Attach separate sheet if necessary): Hiru Halder (34) s/o. Santosh Halder of 74/44 Kumar Durga Nath Lane, Saidabad. Kunjaghatta P.S. Berhampore Dist. Murshidabad.
8. Reasons for delay in reporting by the Complainant/informant:
9. Particulars of properties stolen/involved (attach separate sheet if necessary): ...x...
10. Total value of properties stolen/involved...x...
11. Inquest report/U.D. Case No if any...x...
12. F.I.R. contents (Attach separate sheets if required): The original written suo-moto complaint which is treated as F.I.R. is attached herewith.
13. Action taken: Since the above reported reveals commission of offence(s) as mentioned at item No. 2, registered the case and took up the investigation Myself (S.I. Pintu Mukherjee) to take up investigation...x...on point of jurisdiction, F.I.R. read over to the Complainant/informant admitted to be correctly recorded and a copy given to the Complainant/informant free of cost.

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-34-



:: 3 ::

Beare in the original complaint.

14. Signature of the Complainant.

15. Date & Time of dispatch to the Court....x..

Sd/ Pintu Mukherjee
Signature of the Officer-in-charge, P.S.
Name: PINTU MUKHERJEE
Rank: O/C Lalgola P.S. Murshidabad.
6.9.16.

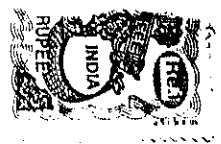
To
The Officer-in-charge,
Lalgola P.S. Murshidabad.

S i r,

person

In producing herewith arrested accused ~~person~~ namely 1)
Hiru Halder (34 yrs) s/o Santosh Halder of 74/44, Kumar Durga Na
-th Lane, Saidabad, Kunjaghata P.S. Berhampore Dist. Murshidabad
with seized articles viz 1) One white plastic container contain
-ing 1800 ml of Codeine mixture packed, labeled and sealed sepa-
-ately marked as label 'A' after taking out 2 (two) samples eac
-h of 100 ml which are also packed, labeled and sealed separate-
ly marked as label 'A1' and 'A2', 2) One black colour Bajaj
Pulsar Motor cycle bearing Regd. No. W.B. 12L/9402 marked as label
'B' to the effect that today (06.09.16) at 01.35 hrs while, I,
S.I. Utpal Ghosh along with C/1463 Salhai Kisku, H.G. 997 Parim
al Singh, VP 130 Uttam Das and CV 154 Alope Kumar Singh vide
Lalgola P.S. G.D.E. No. 219 and P.S. M.C.C. No. 1966/16 dt. 05.09.16
was performing RT-II Night Mobile duty received source informa
c

- 35 -



::42::

information that one person is coming from Bhagwangola Netaji More by riding one black colour Motor Cycle carrying huge quantity of illegal codeine mixture for the purpose of selling to gain illegal money. On receiving this information I informed the matter to you and accordingly as per your kind approval myself along with accompanied force rushed to Jasaitala More to work out this information. At about 01.45 hrs we reached Jasaitala More and kept ourselves concealed in the nocturnal darkness. Soon after that we saw one person coming in a Motor Cycle from Bhagwangola side. We intercepted him and stopped his Motor cycle and found that he is trying to flee away but after hot chased we managed to cordoned him. On being asked he disclosed his name as above. It is found that a white Jerry ken containing some liquid is there in the tool box of his Motor cycle. He failed to clarify the content in the Jerry ken. Accordingly as per provision of N.D.P.S. Act we informed him by issuing a written notice for thorough searching in presence of one Gazetted Officer if he desired and he agreed. I informed the matter to O/C Lalgola P.S. and as per his direction S.I. Rajat Suvra Hazra, Duty Officer of that time tried to contact with the B.D.O. Lalgola with a request to come to the spot for conducting search and seizure of the said person as per guide line of N.D.P.S. Act but could not be conta

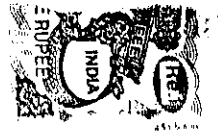
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contacted. I also inform Duty Officer of Lalgola P.S. to send Drug Detection Kit and weighing machine and waited there for appearance of the Gazetted Officer. At about 03.15 hrs, Shri Pinaki Roy, Circle Inspector of Police, Lalbagh arrived at the spot and he disclosed his identity as Gazetted Officer and he issued notice upon him for conducting search. After that I asked and offered the detained person to search ourselves which he declined. As per order of Gazetted Officer I started search of the detained person in presence of said Officer and other available Police witnesses of Lalgola P.S. Dist. Murshidabad and recovered 2000 ml of Codeine mixture in the plastic white container which was kept in the tool box of the black colour Motor cycle and after test by the Drug detection kit and found positive and measured to be 2000 ml with a lab beaker. On further interrogation he failed to produce any valid document in support of the possession of this manufactured Narcotic Drug. After that I seized the recovered Codeine mixture along with the Motor cycle from the possession of the said accused person after preparing proper seizure list duly signed by the witnesses as well as accused person. The search and seizure procedure was done in presence of Circle Inspector of Police, Lalbagh, Later 100 ml of two samples was separated from the said white plastic container packed, leveled and sealed.



- 37 -

:: 6 ::

sealed separately marked as label 'A', 'A1' and 'A2' respectively and the Motor cycle as marked 'B'. So I arrested him for violation of Narcotic Drugs and Psychotropic Substances ^{Act} ~~Act~~ and supplied the copy of seizure list, arrest memo to the accused person. The process of seizure, packing, labeling and arrest of the accused was completed between 03.25 hrs to 04.45 hrs. During interrogation he stated that he is regularly involve in carrying, manufacturing and selling drugs to gain illegal money to maintain his livelihood. As per my dictation this complaint is typed in P.S. computer.

Under the above fact and circumstances I pray to you to initiate a specific case u/s 21(c) N.D.P.S. Act against Hiru Halder (34 yrs) s/o Santosh Halder of 74/44, Kumar Durga Nath Lane, Saidabad, Kunjaghata P.O. Berhampore Dist. Murshidabad and arrange for its investigation.

Yours faithfully

Sd/- Utpal Ghosh
S.I. of Police, Lalgola P.S.
06.09.16

Received on 06.09.16 at 05.41 hrs and started Lalgola P.S. c/no 337/16 dt. 06.09.16 u/s 21(c) N.D.P.S. Act.

Sd/- S.I. Pintu Mukherjee
Officer-in-charge,
Lalgola Police station
Murshidabad. 06.09.16.

Typed by : *Radip Majumdar*
12/11/17



Petn no. 16 cr dt 6th Jan'17, 10th Jan'17, 17th Jan'17,
21st Jan'17, 21st Jan'17

N.D.P.S.236/16
Seal : LALGOLA POLICE STATION
MURSHIDABAD.

Seen,
Sd/- S. Mitra,
Judge, Spl. Court,
Under N.D.P.S. Act,
Murshidabad. 9.9.16

Seizure List

Ref : Lalgola P.S.C/no 337/16 dt.06.09.16 u/s 21(c) N.D.P.S.
Act.

1. Date & time of seizure: On 09.09.16 inbetween 01.25 hrs to 02.30 hrs.
2. Place of seizure : Backside premises of Farasdanga Kali Mandir, Kunja Ghata P.S. Berhampore.
3. From whom seized: As shown and identified by P.C. accused & Hiru Halder s/o Santosh Halder of 74/44 Kumer Durga Nath Lane, Saidabad Kunjaghata P.S. Berhampore.
4. Name & Addresses of witnesses:
 1. S.I. Tanmoy Ghosh. 2. C/1272 Haripada Mondal all of Berhampore P.S. 3. S.I. Utpal Ghosh of Lalgola P.S.
5. Description of seized articles :
One plastic container containing 15000 ml of Codeine mixture said to be of Narcotic Drugs. 2(two) samples each weighing 100 ml are taking out from said plastic container marked as Exhibit "P1" and "P2". Both are packed, Labeled and sealed seperately. The plastic container containing 14800 ml of Codeine mixture is also packed labeled and sealed which exhibit mark 'P'.

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The above articles are seized as shown and identified by P.C. accused Hiru Halder during remand period which I seized as alams of this case.

6. Signature of P.C. accused.

Sd/- Hiru Halder

7. Signature of witnesses:

1. Sd/- Tanmoy Ghosh 09.09.16.

2. C/1272 Haripada Mondal 9.9.16

3. Sd/- Utpal Ghosh S.I. 09.09.16.

Seized in my presence

Sd/- Illegible.
9.9.16.

Seal: Inspector-in-charge,
Berhampore Police Station
Murshidabad.

Seized by me.

Sd/- S.I. Pintu Mukherjee
O/C, Lalgola P.S. 09.09.16

Camp at Farasdanga, Kunjaghata, P.S.
Berhampore, Murshidabad.

Seal: Officer-in-charge Lalgola Police
Station Murshidabad.

Typed by :

Radip Mojumdar

17/1/17

Radip Mojumdar 21.1.17

Tania Dasgupta

21.07.17

02

Tania Dasgupta

21.07.17

Noted by P.C. Ref

Ref: 64. Ref

21/1/17

Authorised by



40-

Petrn no. 16 or dt 6th Jan'17, 10th Jan'17, 17th Jan'17,
21st Jan'17, 21st Jan'17

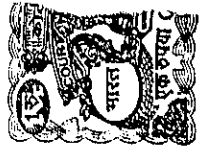
N.D.P.S. 236/16
Seal : LALGOLA POLICE STATION
MURSHIDABAD.

Seen,
Sd/- A. Sharma ^K Roy
Judge, Spl. Court,
Under N.D.P.S. Act, Murshidabad
6.9.16. (i/c)

SEIZURE LIST

Ref : Lalgola P.S.G.D.E.No.219 dt 05.09.16.

1. Date and Time of seizure : On 06.09.16 in between 03.25 hrs
and 04.45 hrs.
2. Place of seizure : Jasaitala More, P.S. Lalgola Dt. Murshidabad.
3. From whom seized : From the possession of accd. Huru Halder
(34) s/o Santosh Halder 74/44 Kumar Durga Nath
Lane, Saidabad, Kunjaghata, BMP, MSD.
4. Name & Addresses of witnesses :
 1. C/1463 Sakai Kisku of Lalgola P.S. Msd.
 2. H.G.997 Parimal Singha of do.
 3. VPV/130 Uttam Das of do
 4. CV/154 Alok Kumar Singha of do.
 5. Sri Pinaki Roy, Circle Inspr. Lalgola, Msd.
5. Description of seized articles :
 1. One white plastic container containing 1800 ml of codeine mixture packed, labeled and sealed separately marked as label 'A' after taking out 2(two) samples each of 100 ml which are also packed, labeled and sealed separately marked as label 'A1' and 'A2' (Net weight 2000 ml)
 2. One black colour Bajaj Pulsar Motor cycle bearing Regd.No.



- 41 -
:: 2 ::

No.W.B.12L/9402 marked as label 'B'.

Seized the above noted articles as alamat of the case.

SL.No.1 kept in Tool box of SL.No.2.

Signature of witnesses;

1. Sd/- C/1463 Sakai Kisku
2. Sd/- H.G.997 Parimal Singha (Bengali)
3. V.P.V.130 Uttam Br.Das.
4. Sd/- Alok Kumar Singha.
- 5.

Received one copy Sd/- Hiru Halder (Signature of a ccd.person).

Seized in my presence.
Sd/- Pinaki Roy C.I.(L)
Dt.06.09.16
Circle Inspector of Police
Lalbagh Circle, Murshidabad.

Prepared and seized by me
Sd/- Utpal Ghosh S.I.
Lalgola P.S.Msd.
Camp at Jasaitala More P.S.Lalgola
Murshidabad. 06.09.16

This refers to Lalgola P.S. C/no.337/16 dt.06.09.16 u/s 21(c)
N.D.P.S.Act.

Sd/- S.I. Pintu Mukherjee
Officer-in-charge,
Lalgola Police Station
Murshidabad.
06.09.16

Typed by : *Pradip Majumdar*
17/1/17

p - 42 -

In the Court of Ld. Jm.
Md. of Benham

NBS case NO -

244(D)/16

Petitioner.

vs.

Chaya Halder

Filed on - 5/9/18

- 43- Annex - 183'

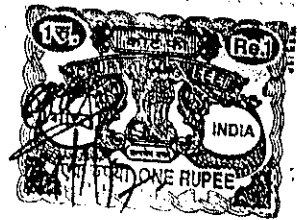
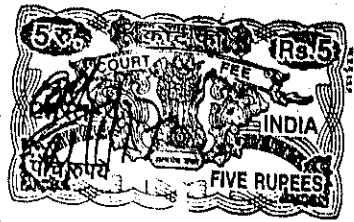
In the court of
ADJ, 2nd, Mysd.

NDPS 236/16

State

vs.

Hiru Halder.



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NDPS 236/16

Present:- Smt. Arti Sharma.

Judge, Spl. Court
Under N. D. P. S. Act
Murshidabad (I/c)

$\frac{1}{6/9/16}$

Accused Hiru Halder is brought under arrest in
C/W Lalga. P.S. Case No. 337/16 dt 6.9.16 u/s 21(c) of NDPS
Act. Register the case as NDPS Case of this Court. The
accused is taken into custody.

To for production of accused from concern
correctional home and I.O's report. Seen the FIR & forwarding
report, accused challan and other relevant papers viz- seizure-
list. On the prayer of I.O the seized articles are
authenticated!

Judge, Spl. Court
Under N. D. P. S. Act
Murshidabad

- 44 -

N.D.P.S. Case No. 236/2016

Present: Smt. Arti Sharma, Judge, Special Court, under N.D.P.S. Act, Berhampore, Murshidabad.

Later Order dated 06.09.2016

The I.O. has submitted a prayer through Ld. P.P. in-charge praying for seven (07) days police remand in respect of accused Hiru Halder, son of Santosh Halder of 74/44 Kumar Durga Nath Lane, Saidabad, Kunjaghata, P.S. Berhampore, District Murshidabad.

The accused above named is produced before this Court.

Ld. Lawyer for the accused as well the State are present before the Court.

Ld. Defence Lawyer has filed a written objection in the form of retraction which is verified by the accused Hiru Halder against the I.O.'s prayer seeking police custody of the accused for seven days.

Ld. P.P.in-charge on behalf of the prosecution has submitted that for further recovery of the contraband article and also for securing arrest of other associates, involved in the offence, the accused above named is required to be remanded to police custody for at least seven days.

Against this submission by Ld. P.P. in-charge, the Ld. Defence Lawyer has raised strong objection. He submits that the present case, involving the accused is an outcome of political vendetta. That the accused happens to be Ex-Councillor of local municipality of good repute. That he was arrested before a day and petition u/s 57 of Cr.P. Code is initiated by the wife of the accused before the Court of Ld. C.J.M., Murshidabad which is pending for disposal. Ld. Defence Lawyer further submits that the accused is planted with 2000 ml. of codeine mixture and as per statutory limit, the actual amount of contraband, is yet not ascertained to implicate the accused with this offence. On the above plea, Ld. Defence Lawyer prays for rejection of prayer for police remand.

I have gone through the prayer of the I.O. It is duly forwarded by the Superior officials, namely, C.I. of Police, Lalbagh Circle, Murshidabad and S.D.P.O., Lalbagh, Murshidabad.

I have also perused the C.D. as produced by the prosecution.

Considered the materials in the CD. and also the submission, advanced by the rival parties.

At this stage, while the entire investigation is pending and the matter u/s 57 of Cr.P.Code is also sub-judiced, it appears that for purpose of investigation, prayer of police custody, submitted by the I.O. be allowed in part. The accused Hiru Halder be remanded to P.C. only for three (3) days. Accused must be produced before the regular Special Court on 09.09.2016.

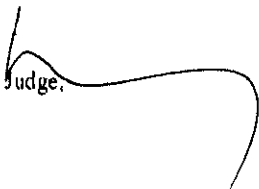
During P.C. period the I.O. must follow the guidelines and directions of the Hon'ble Apex Court of India in respect of the accused and no third degree measure should be adopted during P.C. period for the purpose of investigation. The I.O shall render all medical help for the accused as and when necessary.

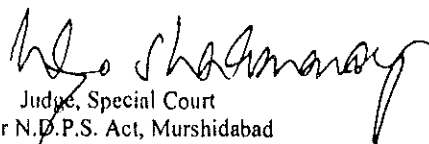
Return the C.D.

To 09.09.2016 for production of accused and necessary order.

Let a copy of this order be supplied to the I.O. for information and necessary action.

Dictated and corrected by me.


Judge.


Judge, Special Court
under N.D.P.S. Act, Murshidabad
in-charge

Considered on record Hiru Halder.

Hiru Halder
OIC, Lalbagh P.S.
06/09/2016

- 45 -

In the court of
ADJ, 2nd, Mys.
NDPS 236/16
State
vs.

Hiru Halder.

NDPS 236/16

2.
9/9/16 Accused Hiru Halder is produced from
P.C. He is taken into custody.

Seen the accused challan, seizure list, exhibit
challan and other relevant papers.

During P.C. detention the seized articles
which was recovered are authenticated as per I.O's
prayer.

To 23.9.16. for production of accused and
I.O's report.

Judge, Spl. Court
Under N. D. P. S. Act
Murshidabad

Later Order dated 09.09.2016

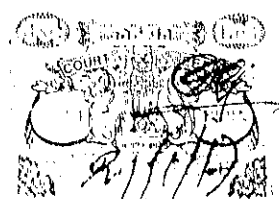
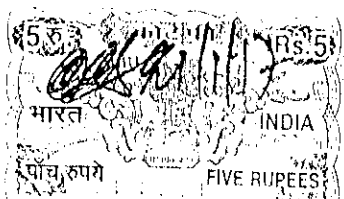
Today accused Hiru Halder has been produced from P.C. detention in
connection with this case along with accused challan, seizure list, exhibit challan and
other relevant papers, so furnished from the end of the investigating agency.

Perused the documents so filed today by the investigating agency.

No prayer for further P.C. detention of the accused petitioner has been made
from the end of the investigating agency in connection with this case for further
progress of the investigation of this case towards different facets of crime of this case.

Ld. Senior Counsel for the accused petitioner Hiru Halder has prayed for bail
and contended that on the fateful night of apprehension of the accused petitioner he
was proceeding towards Calcutta for his personal purpose by train and in support of
that claim document has been filed, reflecting reasonable ground to hold that prima
facie the accused concerned was away from the city on that fateful night of the
occurrence and it has also been contended from the end of the Ld. Counsel for the
accused petitioner that he was away and apprehended and enroute by the alleged
investigating agency, so he was found missing from the angle of the family members
of the accused petitioner and as a result of that to ascertain the whereabouts of the
accused petitioner, a petition u/s 57 of Cr.P.C. was filed by the wife of the accused
petitioner before the Court of Ld. C.J.M., Murshidabad.

...Contd.



Contd... Later Order dated 09.09.2016

It has further been contended that as a result of political vendetta, this accused petitioner has been falsely tagged and implicated without just cause and just in order to keep the accused petitioner detained in the custody of the correctional home, he has been charged with this case with a false and fabricated prosecution case. He has also submitted that the P.C. detention was utilised by the investigating agency at the cost of the accused petitioner and there was no fruitful result for the first two days of P.C. detention of the accused petitioner and finally on the last day of the P.C. detention according to the English Calendar date in the wee hours of 9th September, the accused petitioner made disclosure statement and on the basis of such disclosure statement, huge quantity of contraband goods in the form of 15 litres of codeine mixture could be found, recovered and seized in connection with this case against seizure list from the far away from the place where the accused petitioner was apprehended where the Police Station which is dealing with this case, is situated and by submitting this, Id. Counsel has prayed for bail, since the accused petitioner has got no involvement in any way and manner in connection with this case.

In response to that Ld. P.P. in-charge has prayed for consideration of the gravity of the case and has contended that P.C. detention of the accused petitioner has become fruitful and since there has been enormity of charge and gravity of the case as prima facie forthcoming against the accused petitioner in this early stage of investigation, so the accused petitioner's instant bail petition deserves no positive consideration and the same deserves to be rejected.

I have given thorough consideration to the materials on record and I have gone through the contents of the C.D.

It is a fact that there is specific case, projected against the accused petitioner and he has been apprehended and there was specific allegation that from the conscious possession of the accused petitioner a jerican, containing contraband goods, kept in the tool box of his motor cycle, could be found and he could not justify the reason for keeping the same in his conscious possession. This has further been transpiring that the P.C. detention of the accused petitioner has been granted at the instance of the investigating agency and that has yielded fruitful result, but the question raised by the Ld. Counsel for the accused petitioner, regarding the factual matrix of the detention span of the accused petitioner in the P.C. period, remained unanswered from the end of the Ld. Counsel for the state/prosecution convincingly. This apart this has further been transpiring that there was seizure of the contraband goods intended to be made in presence of Gazetted officer, Inspector-in-Charge of Berhampore P.S., so the Gazetted Officer chose by the investigating agency to sign in the seizure list of this case dated 09.09.2016 had reflected and endorsed in the same seizure list "Seized in my presence" not the word 'Searched'.

...Contd.

- 47 -

1809
1669
707

N.D.P.S. Case No. 236/2016

Contd... Later Order dated 09.09.2016

These are the fallacies that remained unanswered at this stage, but this Court has got no plenary jurisdiction to consider bail petition of the accused petitioner from whom huge quantity of contraband goods is apprehended to have been recovered from his conscious possession and at his instance at subsequent stage of investigation of this case.

In this backdrop, at this nascent stag of investigation, bail petition for the accused petitioner, Hiru Halder is not entertained and the same stands rejected on contest fixing 23.09.2016 for his production and production of C.D. for consideration of further progress of investigation.

C.D. must be produced on the next date fixed.

Xe-rox copy of the petition u/s 57 of Cr.P.C. and the xe-rox copy of railway ticket be kept with the case record for future reference, if any.

To 23.09.2016 for production of accused Hiru Halder and C.D. and I.O.'s report.

Dictated and corrected by me.

Judge,

Judge, Special Court, under N.D.P.S. Act,
Berhampore, Murshidabad.

Harlyan Singh
21.1.17

Elonatisa

21.01.17

JUSTICE

INTERIM

Elonatisa

21.01.17

RECEIVED

21/01/17

CLERK

18/1/17

- 48 -

In the court of
ADJ, 2nd, Mysd
NDPS 236/16
State
vs.
Hiru Halder.



Order No. 3 dated 23.09.2016

Bail petition for the accused petitioner Hiru Halder has been pressed today on the ground of false implication and long detention and on further ground that without just cause he has been brazenly foisted in this case on some obvious motives and he deserves to be granted bail, specially when on the relevant date and time of occurrence of this case he was far away from the alleged place of occurrence of this case and he was travelling on a train towards Kolkata and he has furnished prima facie bona-fide document supporting his claim.

Ld. Counsel for the accused petitioner has further submitted that he had never been to the place of occurrence of this case at any point of time and he was thrust there and with the help of manipulation of the investigation agency he was tagged in that case and P.C. was sought for at the early stage of investigation on the ground that though only 2 liters of codeine mixture could be found from tool box of his motor cycle on which he was riding, he might be a potential person who can make some disclosure statement on the basis of which there may be discovery of facts and that may lead to further discovery and recovery of cache from where contraband goods can be found. It has also been agitated by the Ld. Counsel for the accused petitioner that what had happened in between the initial two days of the P.C. of the accused, remained unanswered from the materials on record. These all have raised suspicion as

...Contd.

cc

[Handwritten signature]

In the court of
ADJ, 2nd, N.D.
NDPS 236/16 - 49 -
State
vs.
Haru Halder.

Annex - P-5

N.D.P.S. Case No. 236/2016

Contd... Order No. 3 dated 23.09.2016

to the very basis of the prosecution case and for which the Ld. Counsel for the accused has prayed for bail stating further that this accused petitioner has a specific political entity and has got no chance of abscondance and for that reason he may be enlarged on bail at this stage, specially when more or less all the facets of the alleged investigation of this case have been explored leaving behind almost no other angle of investigation of this case to unearth any other opening of the alleged offence in particular which are to be known by the Investigating agency as yet.

Ld. P.P. in-charge raises vehement objection against the instant bail petition contending specifically that this accused petitioner was apprehended almost red handed and from his motor cycle that he was riding at the time of happening of the apprehension of the accused 2 liters of codeine mixture, contained in jerican, kept in the tool box of the said motor cycle, could be recovered and thereafter during the course of P.C. detention in pursuance of his disclosure statement, huge quantity of contraband goods in the form of codeine mixture could be found, recovered and seized which is much beyond commercial limit, as a result, question of granting bail to this accused petitioner does not arise.

Heard both sides exhaustively. Perused the available materials on record.

I have also given anxious consideration to the contents of the C.D. of this case.

This has been transpiring from the available materials on record, furnished from the end of the accused petitioner through his Ld. Counsel that on the relevant date of the occurrence of this case, the accused petitioner was travelling in a Down train for proceeding to Kolkata and time of departure of the said train was the evening time and on the basis of the special knowledge of the accused petitioner he has been specifically claiming that he had been in the said train from where he was detained by the investigating agency and taken far away from that spot towards the north of this district and there he was entangled with this case. The question, raised by this Court regarding ^{possibility of} keeping of jerican, containing 2 liters of codeine mixture in the tool box of the said motor cycle was never answered and explained by the investigating agency. This has been further transpiring from the materials on record and from the document dated 06.09.2016 that the investigating agency had tried their level best to show that there was strict compliance of Section 50 of the N.D.P.S. Act, but notice, prior to that to show that there was strict compliance of Section 50 of the N.D.P.S. Act is not appearing to be satisfactory one according to the relevant provision of the Section 50 of the N.D.P.S. Act as the contents of the same are defective. It may be questioned by the investigating agency that since the contraband materials could be found from the tool box of the motor cycle of the accused, so the question of compliance of Section 50 of the N.D.P.S. Act does not arise, but the forwarding note dated 06.09.2016 of the O.C. Lalgola P.S. who happens to be the I.O. of this case, reveled categorically that S.I. Utpal Ghosh started searching the detained person in presence of gazette officer

Contd.

In the court of
ADJ, 2nd, N.S.D.
NDPS 236/16
State
vs.
Haru Halder.

- 50 -

N.D.P.S. Case No. 236/2016

Contd... Order No. 3 dated 23.09.2016

and if that be so, there can be legitimate inference to hold that the person of the accused was searched on observance of principles for compliance of the Section 42 of the N.D.P.S. Act and in that case, since there was search of person of the accused, this notice dated 06.09.2016, placed for complying the mandatory provision of the said Section 50 of the N.D.P.S. Act appears to be insignificant and defective and the same inflicted severe dent to the entire investigation of this case and seizure of the contraband goods of this case on 06.09.2016, even then in order to unearth other facets of the crime of this case as expected, P.C. prayer of the investigating agency for this accused petitioner was allowed for a reasonable span of time by the Ld. Competent Court. The first two days of the said P.C. detention did not yield any fruitful result to the investigating agency, as the C.D. reveals and in order to fill up that lacunae it has been reflected in the C.D. that the accused petitioner had tried to mislead the investigating agency for those first two days of the P.C. detention of the accused petitioner in connection with this case. What was the misleading statement or activity, on the basis of which, the investigating agency had to waste time, remained unexplained. Later at a belated stage of the P.C. detention of the accused petitioner, on the intervening night of 8th September and 9th September 2016 according to English Calendar date, the alleged recovery of huge quantity of codeine mixture was intended to be established. Most peculiarly the place of recovery of the huge quantity of contraband goods from the backside of temple, is also prominent and almost exposed place and many persons go there since accessible to others and it could not be shown in the report, from which particular hidden place of the backside of the said Kuli Temple, huge quantity of contraband goods could be found in jerican or thereby it could be recovered. These fallacies have affected the entire investigation to a reasonable extent. The C.D. is not reflecting specifically, as rightly pointed out and questioned by the Ld. Counsel for the accused petitioner, that what was the improvement of the investigation of this case from 09.09.2016 after the completion of P.C. remand of the accused petitioner in this case, uptill now.

In this backdrop and having regards to the facts and circumstances, I find that the accused petitioner may find bail of Rs. 10,000/- with one lawyer's surety, subject to the satisfaction of this Court, i.d. to J.C. till 04.11.2016 and if he can avail himself of bail, he shall keep himself available to the investigating agency for interrogation, if any, in connection with this case from 10 a.m. to 11.30 a.m at the concerned P.S. If he is on bail, he shall not leave his place of residence, without giving prior intimation to the investigating agency, except on medical exigency.

If he is on bail todate (04.11.2016) for his appearance and I.O.'s report.

If he is not on bail todate (04.11.2016) for his production from the custody of the correctional home and I.O.'s report.

...Contd.

In the court of
ADJ, 2nd, Mysd.
NDPS 236/16
State
vs.
Hiru Halder.

- 51 -

N.D.P.S. Case No. 236/2016

Contd... Order No. 3 dated 23.09.2016

Accordingly, the instant bail petition is disposed of.

It has been reported by Superintendent B.C.C. Home that accused Hiru Halder, son of Santosh Halder, involved in connection with this case could not be produced before this Court today as he is now detained in police custody since 19.09.2016 as per Order of the Ld. C.J.M., Murshidabad. Let this report dated 23.09.2016 be kept with the case record.

Todate (04.11.2016)

Dictated and corrected by me.

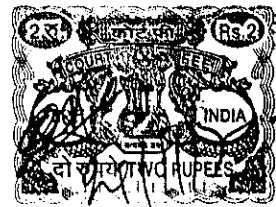
Judge,

Judge, Special Court,
under N.D.P.S. Act, Berhampore, Murshidabad.

Urgent copy sent to 21.01.17
Gonalisa
21.01.17
interlineation.
Gonalisa 21.01.17
Signature of

2016/11/17
Noted by 21/11/17
District
Authorised under Sec 1 of 1871

In the court of
ADJ, 2nd, Mys.
NDPS 236/16
State
vs.
Hiru Halder.



4
26/9/16

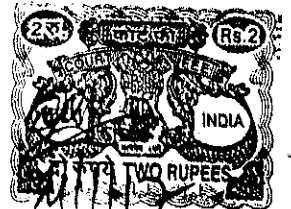
Bail bond furnished by the surety
Prasanta Kumar Singha on behalf of accused
Hiru Halder. The bail bond is _____

Issue R.O.
To date (4.11.16)

Judge, Spl. Court
Under N. D. P. S. Act
Murshidabad

By, Halgan may singha 21.01.17
Comptroller of Prisons
21.01.17
G. Prasad
21.01.17
G. Prasad
21.01.17

Certified to be a True Copy
Refar ch. 21/1/17
Signature
Author
21/1/17



In the court of
ADJ, 2nd, Mysr.
NDPS 230/12
State
vs.
Harn Halder.

5
4/11/16 by a ptr. and praying for time. Case is
adjourned.
To 12/4/17 for app. / 9.04
report.

for
Judge, P.S. (C)
Cader H. D. P.
Marshallable

referred by Singh
21.1.17

C. L. Sonar
21.01.17
C. L. Sonar
21.01.17
C. L. Sonar
21.01.17
C. L. Sonar
21.01.17

C. L. Sonar 21.01.17
Marshallable

referred to C. L. Sonar
21/1/17
C. L. Sonar
21.01.17
Marshallable
Authorized w/s to C. L. Sonar

-54-

to be
by
on this

Commissioner of Affidavit
High Court, Appellate Sit
Calcutta

Form No. 27

G.R. no - 5336/16

SEEN

Annex P-6

FIRST INFORMATION REPORT

(Under Section 154 Cr.P.C.)

Muzishidabad P.S. Berhampore Year 2016 FIR No. 1086/16 Date 08.11.16

Arms Act Sections 25(1)(a) (ii) Act Sections

Act Sections (iv) Other Acts & Sections

a) Occurrence of Offence Day Tuesday Date From 08.11.16 Date to

Time Period night Time From Time to

(b) Information received at P.S. Date 08.11.16 Time 00.15 hr.

(c) General Diary Reference: Entry No. (s) 503 Time 00.15 hr.

4. Type of information: Written / Oral

5. Place of Occurrence: (a) Direction and Distance from P.S. North, 0.3 KM. Beat No. 7.B.No- VII

(b) Address Farashidanga Ghorapara, adjacent to a culvert on Farashidanga

Amanigangichas Road below culvert plan No. Berhampore Dist- Muzishidabad.

(c) In case outside limit of the Police Station, then the

Name of the P.S. District

6. Complainant / Informant:

(a) Name SI Souvar Pasandhar

(b) Father's / Husband's Name

(c) Date / Year of Birth

(e) Passport No. Date of Issue (d) Nationality Indian

(f) Occupation SI of Police Place of Issue

(g) Address Berhampore Police Station Dist- Muzishidabad

7. Details of known / suspected / unknown accused with full particulars (Attach separate sheet, if necessary)

Hiru Halder (34) S/O - Santosh Halder of 74/44 Kuman

Durgamohi lane, Saidabad Kuriyaghat P.S. - Berhampore Dist- Muzishidabad.

8. Reasons for delay in reporting by the Complainant / Informant:

9. Particulars of properties stolen / involved (attach separate sheet, if necessary):

one improved one shot 303 bore pipgun, length about 09 1/2 inch.

10. Total Value of properties stolen / involved

11. Inquest Report / U.D. Case No. if any

12. FIR Contents (Attach separate sheets, if required):

The original written complaint of

the complainant which is treated as F.I.R. is attached herewith

13. Action taken: Since the above reported reveals commission of offence (s) as mentioned at item No. 2, registered the case

and took up the investigation / directed SI Souvar Mozumdar to take up investigation / refused investigation /

transferred to P.S. on point of jurisdiction, FIR read over to the Complainant /

informant, admitted to be correctly recorded and a copy given to the Complainant / informant free of cost.

14. Signature / Thumb Impression of the Complainant / informant

Signature of the Officer-In-Charge, Police Station

Name ANUPAM DAS

Rank SI of Police No. 1241

Date 08.11.16

15. Date & Time of dispatch to the Court: recorded by me: 8/11/16

Signature of the Officer-In-Charge, Police Station

Signature of the Officer-In-Charge, Police Station

Signature of the Officer-In-Charge, Police Station

Signature of the Officer-In-Charge, Police Station

Signature of the Officer-In-Charge, Police Station

Signature of the Officer-In-Charge, Police Station

Signature of the Officer-In-Charge, Police Station

Signature of the Officer-In-Charge, Police Station

Signature of the Officer-In-Charge, Police Station

To
The Inspector. in charge
Berhampur PS, Murshidabad

Sir,

In producing herewith the P.C. no. Hira Haldar (34)
S/o Santosh Haldar of 14/141 Kuman Durgamth Lane, Saidabad
Rungachhat, PS. Berhampur, 21. Murshidabad along with
stuffed articles as per exhibit no. (i) one improvised one
shotter, 303 bore pipegun, having wooden butt, iron
barrel, firing pin, trigger etc. measuring length about 09 1/2
(ii) one round 303 live ammunition & (iii) one yellow colour
polythene carry bag printed "KORVO" brand "KORVO" on
J. S. Sumanak Tazafdar of Berhampur PS do hereby
 lodge written complaint against the above
accused person to the effect that on 11.11.16 at 18:10h
myself along with force left Berhampur PS vide G.D. No.
dt 07.11.2016 & M.C. No. 7572-16 dt 07.11.2016. Reached
Murshidabad PS at 18:55 hrs and inter related P.C. no.
Hira Haldar in CPW Berhampur PS case no. 155/16 dt
14.11.16 / 148/149/324/325/3027PC, 25/27 Ann. Act & 3/4 B.S.
There after left Murshidabad PS with force and P.C. no.
Hira Haldar to verify his statement, Reached at Farash
danga Chhatpura at about 19:55 hrs and on digging
at below a dead plain tree adjacent to a culvert on Farash
danga. Ammuni gun (barrel), at the place pointed out
by the P.C. no. Hira Haldar, recovered one yellow
coloured plastic carry bag. Inside the carry bag found
one improvised one shotter 303 bore pipegun, having
wooden butt, iron barrel, firing pin, trigger etc.
measuring length about 09 1/2 inch loaded with one
round 303 live ammunition. And Hira Haldar
stated that he did not possess any papers for the arms
& ammunition and kept it concealed for use when
required. As per report of Hira Haldar the recovered
arms & ammunition in presence of witnesses namely (i)
Madhu Ghosh S/o of Keshab Ghosh of Farashdanga & (ii) Bishu
Nirmore, PS. Berhampur, 21. Murshidabad & (iii) Bishu
Das S/o of Laxminarayana Das of Rungachhat, Saidabad
PS. Berhampur, 21. Murshidabad who had gathered the

Received on 8/11/16
at 10:15 hrs and
stamped Berhampur
PS on 10/11/16
dt 10:15 hrs.
Sd/- (A) Ann. Act
Sd/- (A) Ann. Act

Atchulip. Min.
dt 8/11/16

Co

8/11/16.

P-6'

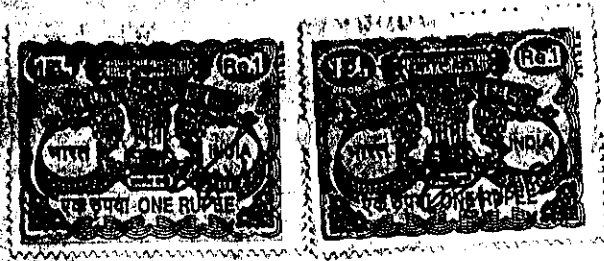
Seeing police and had witnessed them entire recovery, search seizure and labelling as done by PC and Hira Haldar. Seizure was done from 20.15 hrs to 20.45 hrs. I also labeled the seized articles left with PC and Hira Haldar and deposited at Murshidabad PS as lock up of Berhampur PS is under repair. Return to PS. and

Hence a case under section 25(1)(a) Arms Act may kindly be started against Hira Haldar (31) S/O Santosh Haldar of 11/14 Kumar Deyanath Lane, Seiden Rungazhat, PS Berhampur, Dist. Murshidabad and arrange for its investigation.

Yours faithfully
Sumanjit Singh
S/O PC
Berhampur
08/11/2016

57-

P-6'



20.01.17, 06.02.17, 06.02.17, 08.02.17, 08.02.17

ORDER SHEET FOR MAGISTRATES' RECORDS.

DISTRICT : MURSHIDABAD.

In the Court of Chief Judicial Magistrate of Murshidabad at
Berhampore.

Present : Shri P. Mitra,
 Ld. Chief Judicial Magistrate,
 Murshidabad.

State -Vs- Hiru Halder.

Ref: Berhampore P.S. Case No.-1086/16 Dtd.08.11.16.

U/s-25(1)(a) Arms Act.

G. R. No.-5336/16.

Order dated:8.11.16:

Seen the F.I.R./Seizure List received from
Berhampore P.S.

sd/ P.Mitra,
C.J.M.,
Murshidabad.

Typed by :- Kanai Ray
7.2.2017.

- 58 -



P-6

20.01.17, 06.02.17, 06.02.17, 08.02.17, 08.02.17

ORDER SHEET FOR MAGISTRATES' RECORDS.

DISTRICT : MURSHIDABAD.

In the Court of Chief Judicial Magistrate of Murshidabad at
Berhampore.

present : Shri P. Mitra,
 Ld. Chief Judicial Magistrate,
 Murshidabad.

State -Vs- Hiru Halder.

Ref: Berhampore P.S. Case No.-1036/16 Dtd.08.11.16.

U/s 25(1)(a) Arms Act.

G. R. No.-5336/16.

Order dated: 8.11.16.

Seen the prayer of I.O. who prays for shown arrest
of accd. Hiru Halder s/o Santosh Halder who is now in J/C
at L.C.C. Home in c/w Berhampore P.S. case No.-150/16 Dtd.-
20.2.16 U/s 147/148/149/324/325/302 I.P.C., 25/27 Arms Act
and 3/4 E.S. Act.

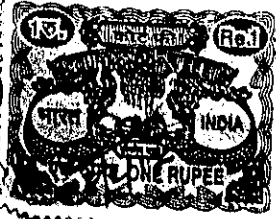
Prayer is allowed.

To 11.11.16 for production.

Issue P/W.

sd/ P.Mitra,
C.J.M.,
Murshidabad.

Typed by : Kanai Ray.
7.2.2017



২০.০১.১৭, ০৬.০২.১৭, ০৬.০২.১৭, ০২.০২.১৭, ০৪.০২.১৭

ORDER SHEET FOR MAGISTRATES' RECORDS.

DISTRICT : MURSHIDABAD.

In the Court of Chief Judicial Magistrate of Murshidabad at
Berhampore.

Present : Shri P. Mitra,
Ld. Chief Judicial Magistrate,
Murshidabad.

State -Vs- Hiru Halder.

Ref: Berhampore P.S. Case No.-1086/16 Dtd. 08.11.16.

U/s 25(1)(a) Arms Act.

G. R. No.-5336/16.

Order dated: 24.11.16:

Accd. 1) Hiru Halder produced from ^{V.C.} ~~for~~ to 07.12.16

for production.

Bail petition filed of Accd. (1) Hiru Halder.

উক্ত পক্ষকে শোনা হল। নথি দেখা হল। নথি হতে দেখা যাচ্ছে যে উক্ত

আসামীর ১১-১১-২০১৬ তারিখ থেকে জেল হেফাজতে রয়েছেন।

আসামীর কারাবাসের মেয়াদ বিবেচনা করে উক্ত আসামীকে একজন জামিন-
দারের অধীনে ১০০০টাকায় জামিন দেওয়া হল।

কথিত ও সংশোধিত:-

স্বাক্ষর:- পি.মিত্র।

স্বাক্ষর:- পি.মিত্র।

মুখ্য বিচার বিভাগ: ম্যাজি:

মুখ্য বিচার বিভাগীয় ম্যাজিস্ট্রেট,

মুর্শিদাবাদ।

মুর্শিদাবাদ।

টাইপ বাই:- M.P.C.
০৭-০৭-১৭.

- 60 -

Annu - 'P.7'

West Bengal Form No. 27

FIRST INFORMATION REPORT

(Under Section 154 Cr.P.C.)

13394 I.I.F.-1

1. Dist. Murshidabad S. Berhampore Year 2016 FIR No. 394/16 Date 05.05.16
2. (i) P.C. Sections 341/326/307/302 (iv) Other Acts & Sections + Sections 25/27 Arms Act
3. Occurrence of Offence Day Thursday Date From 05.05.16 Date to 05.05.16
Time Period 11:35 hrs Time From 11:35 hrs Time to about 07:10 hrs
(b) Information received at P.S. Date 05.05.16 Time 11:35 hrs
(c) General Diary Reference: Entry No. (s) 331 dt. 05.05.16 Time 11:35 hrs

4. Type of information: Written / Oral
5. Place of Occurrence: (a) Direction and Distance from P.S. 03 K.M North Beat No. TB NO - VII
(b) Address In front of the H/o the complainant at 55, Gangadhar Kabiraj Lane, Saidabad P.O. - Kraya P.S. - Berhampore, Md.
(c) In case outside limit of the Police Station, then the Name of the P.S. + District +

6. Complainant / Informant:
(a) Name Chandana Sarkar
(b) Father's / Husband's Name W/o Subir Sarkar @ Bapi
(c) Date / Year of Birth + (d) Nationality Indian
(e) Passport No. + Date of Issue + Place of Issue +
(f) Occupation +
(g) Address 55, Gangadhar Kabiraj Lane, Saidabad P.S. - Berhampore

7. Details of known / suspected / unknown accused with full particulars (Attach separate sheet, if necessary)
① Alarakha Rahman s/o Motiur Rahman of Barhatta Chandra para ② Shah Alam @ Banti s/o Unknown of Kraya Baro Munir Dhar ③ Hieu Haldar s/o Santosh Haldar of
8. Reasons for delay in reporting by the Complainant / Informant: Faras danga, Kunja ghata
(4) Babon Roy @ Patla s/o Montu Roy of Palpara, Kalikapurail of P.S. - Berhampore (5) Babon Ali of Natungram P.S. - Dist -
9. Particulars of properties stolen / involved (attach separate sheet, if necessary): Murshidabad @ Kraya
Sharma of Kerani bagan, Kraya
(7) Mokonal Rosid s/o Rosid Khan of Jamidari
Gorabagan P.S. - Berhampore all of Dist - Md.

10. Total Value of properties stolen / involved +
11. Inquest Report / U.D. Case No. if any +
12. FIR Contents (Attach separate sheets, if required) The original written complaint of the complainant which is treated as FIR is attached here with.

13. Action taken: Since the above reported reveals commission of offence (s) as mentioned at Item No. 2, registered the case and took up the investigation / directed SI Anjan Bhowmik to take up investigation / refused investigation / transferred to P.S. + on point of jurisdiction, FIR read over to the Complainant / informant, admitted to be correctly recorded and a copy given to the Complainant / informant free of cost

14. Signature / Thumb Impression of the Complainant / informant Recorded by me Signature of the Officer-In-Charge, Police Station SAILENDRA NATH BISWAS

15. Date & Time of dispatch to the Court: 05/05/16 Rank 1/c, B.M.P. P. No. 1110
Inspector-In-Charge
Berhampore Police Station
Murshidabad

Dr.

१. नाम -
 २. पता -
 ३. विवरण -
 ४. दिनांक -
 ५. स्थान -
 ६. संख्या -
 ७. प्रमाण -
 ८. हस्ताक्षर -
 ९. मोहर -
 १०. दिनांक -

received on 05.05.16 at 11:35 hrs
and started Benlampoore PS
case no 394/16 dt. 05.05.16
45 341/326/307/34 Ipe + 25/27

fat stick

Lehigh

71/50/50

[illegible]

এইভাবে প্রার্থনা, উপরোক্ত অর্থের বিবেচনা করতঃ
উপরোক্ত স্বার্থের যথাবিহিত তদন্ত করতঃ দায়িত্ব প্রতিষ্ঠিত
যথাযথ আর্থ প্রদান ব্যক্তি কর্তৃক নিম্নলিখিত
আ. -

ਦਸਾਰੀ ਕਾਜਿਦਾਰ ਨਾਮ ੭ ਭੈਰਾਵਾ:-

1) આભાસી રૂઝડા - જાણ અભિનંદન રૂઝડા
અભિનંદન - આભાસી (પાન ન રાખે હોય) નિર્જન
2) આભાસી @ જાણ

১) জিলা আদালত বীর, চক্করমুড়,
খুলনা, বাংলাদেশ
২) শ্রী শ্রী জিলা প্রশাসন খুলনা
আ.- চন্দ্রমাণ্ডলী, কুমিল্লা
চক্করমুড়, ঝাংসাদারদ

4) தாவர நாடி @ அரண்மனை பித்த கூட்டு நாடி

5) ਬਾਹਰ ਆਇਆ ਮਿਥਾ-

5) $\frac{1}{x^2} = x^{-2}$
 $\frac{d}{dx} x^{-2} = -2x^{-3} = -\frac{2}{x^3}$

6) ଅଧିକାର ଏବଂ ଅଧିକାର

১) কলকাতা বিশ্ববিদ্যালয়, কলকাতা, কলকাতা বিশ্ববিদ্যালয়
২) কলকাতা বিশ্ববিদ্যালয়, কলকাতা বিশ্ববিদ্যালয়
৩) কলকাতা বিশ্ববিদ্যালয়, কলকাতা বিশ্ববিদ্যালয়

Tarko -
 Chandana Sorkar
 (w) 9609276231

62- Annex - 'B-7'

In the Court of Sessions Judge, Murshidabad

Present : Sri. R. Mukherjee,
Sessions Judge, Murshidabad.
(In-charge)

Crl. Misc. Case No. 5589/2016

Ref. : Berhampore P.S Case No. 394/2016 dated 05.05.2016 (G.R No. 1943/2016).
u/s 341/326/307 of the I.P.C 25/27 of Arms Act.

Hiru Halder

.....Accused/Petitioner(s).

Vs.

The State

Order No. 3 dated 02.11.2016

This is an application for bail u/s 439 Cr. P.C wherein Ld. Advocate for the above named accused petitioner goes to state that the present accused petitioner is in custody since 19.09.2016 and, he is innocent and not involved with the instant case, so considering his period of detention, bail be granted.

Ld. P.P raises objection and he goes to state that the accused petitioner is a very notorious person of the locality and, being the ex-councilor of Municipality, he is very influential person and he has chequered track records having numerous number of cases leveled against him which are very much serious and, if he be released on bail, there is every possibility of tampering with the evidences and, as such, he prays for rejection of bail.

It is submitted that no application for bail on the selfsame cause of action has been filed or rejected by Hon'ble Court.

Heard both sides. Perused the bail application and the materials available in the case record and CD.

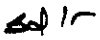
Considering the statement of the injured recorded u/s 164 of the Cr.P.C and also considering the other materials on record and CD, I find the detention suffered by the present accused petitioner is sufficient and, as such, I think the bail prayer of the present accused petitioner should be considered and allowed.

Hence, the accused petitioner may be enlarged on bail of Rs.10,000/- with one local surety of like amount, subject to the satisfaction of the Ld. CJM, Murshidabad with a condition that the accused petitioner shall meet the I.O twice in a week till filing of charge sheet of the case.

Return the CD.

This Criminal Misc. Case is thus disposed of.

D/c by me.


S/J, Msd (I/C)


Sessions Judge, Murshidabad (I/C)

Memo No. 16118(2) VD Dt. 02.11.16
Copy of Judgment / Order Date 02.11.16
Forwarded to the Ld. C.J.M., Msd.
for information & necessary action

Sessions Judge, Murshidabad



- 63 - Ann. P8

West Bengal Form No. 27

FIRST INFORMATION REPORT

(Under section 154 Cr. P.C.)

94288

1. st. Murski Dabad P.S. Berhampore Year 2014 FIR No. 1187/14 Date 11.12.14
2. (i) Act I.P.C Sections 147/149/447/325 (ii) Act 307/427 IPC Sections 3/4 PO PP Act +
- (iii) Act _____ Sections 9 MPO Act. (iv) Other Acts & Sections _____
3. (a) Occurrence of offence Day Thursday Date From _____ Date to 11.12.14
- Time Period _____ Time From _____ Time to _____
- (b) Information received at P.S. Date 11.12.14 Time 20:15 hrs
- (c) General Diary Reference: Entry No.(s) 831 Off. 11.12.14 Time 20:15 hrs
4. Type of information: Written / Oral
5. Place of Occurrence: (a) Direction and Distance from P.S. 02 K.M East Beat No. TB M-1
- (b) Address Berhampore College Campus P.S. Berhampore
Dist- Murski Dabad
- (c) In case outside limit of the Police Station, then the
Name of the P.S. _____ District _____
6. Complainant / Informant:
- (a) Name Samarjeet Mandal
- (b) Father's / Husband's Name Principal, Berhampore College
- (c) Date / Year of Birth _____ (d) Nationality Indian
- (e) Passport No. _____ Date of Issue _____ Place of Issue _____
- (f) Occupation Sgt. Service
- (g) Address Berhampore Murski Dabad
7. Details of known / suspected / unknown accused with full particulars (Attach separate sheet, if necessary):
UNKNOWN PERSONS
8. Reasons for delay in reporting by the Complainant / Informant: _____
9. Particulars of properties stolen / involved (attach separate sheet, if necessary): _____
10. Total value of properties stolen / involved _____
11. Inquest Report / U.D. Case No. if any _____
12. FIR Contents (Attach separate sheets, if required):
The original written complaint of the complainant which is treated as F.I.R is attached herewith.
13. Action taken: Since the above reported reveals commission of offence(s) as mentioned at Item No. 2, registered the case and took up the investigation / directed SI Nabin Kumar to take up investigation / refused investigation / transferred to P.S. Berhampore on point of jurisdiction, FIR read over to the Complainant / informant, admitted to be correctly recorded and a copy given to the Complainant / informant free of cost.
14. Signature / Thumb Impression
of the Complainant / Informant Recorded by me Signature of the Officer-In-Charge, Police Station 11/12/14
15. Date & Time of dispatch to the Court: 11/12/14 Name ARUNAVA DAS Rank I/e, BMR No. _____
Inspector-in-Charge
BERHAMPUR P.S.

- 64 -

P-8

By Stn. 1 Berhampore Court [B. Rly.]

BERHAMPORE
A NAAC ACCREDITED



COLLEGE
COLLEGE

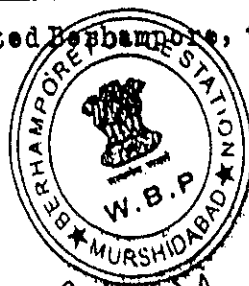
03482-252545

Berhampore * West Bengal * Pin-742101

No. _____

Dated Berhampore, the 11th Dec. 2014

To
Mr Inspector-in-charge,
Berhampore Police Station,
Berhampore, Murshidabad.



Sub: Unwanted incident happened in the
College Campus.

Sir, This is to inform you that a very exceptional
unwanted incidence has happened in the College Campus
where a hooly mob entered into College & committed
hooliganism with bamboos, sticks and weapons. Many
students were attacked and wounded by them and the
College properties have been destroyed. It is also
reported that wounded students have been admitted
into hospital, among whom some are severely wounded.
We are feeling very much insecure in the College Campus.

Under these circumstances, you are hereby
requested to take necessary actions on the basis of
video footage from the media.

Every co-operation from our College end be
given to you in this respect.

With regards,

Samarshi Mandal

PRINCIPAL
Berhampore College
Berhampore, Murshidabad.

Received on 11.12.14 at 20.15 hrs and
started Berhampore P.S case no

1187/14 dt. 11.12.14 N/S 147/149/447/

325/307/427 IPC + 3/4 P.O.P. Act

9 M.P.O. det.

For deep copy

11/12/14

- 65 -

'P8'

In the Court of Sessions Judge, Murshidabad

Present : Sri. R. Mukherjee,
Sessions Judge, Murshidabad.
(In-charge)

Crl. Misc. Case No. 5964/2016

Ref. : Berhampore P.S Case No. 1187/2014 dated 11.12.2014 (GR No. 5811/2014).
u/s 147/149/447/325/307/427/34 of the I.P.C, 3/4 of P.D.P.P Act and 9 of M.P.O Act.

Hiru Halder

.....Accused/Petitioner(s).

Vs.

The State

Order No. 3 dated 02.11.2016

This is an application for bail u/s 439 Cr. P.C wherein Ld. Advocate for the above named accused petitioner goes to state that the present accused petitioner is innocent and is falsely implicated in the present case and, he is in custody since 06.10.2016, so considering his period of detention and innocence, bail be granted.

Ld. P.P raises objection and he goes to state that the accused petitioner is a very notorious person of the locality and, being the ex-councilor of Municipality, he is very influential person and the police was not even dared to arrest him before in the instant case which was taken place in the year 2014 and, he was absconded from taking part in the investigation and arrested after prolonged period of time. Moreover, he has chequered records and he is a noted criminal in the locality and if he be released on bail, he shall tamper with the evidences and, as such, he prays for trial of the accused in custody and for which bail be rejected.

It is submitted that no application for bail on the selfsame cause of action has been filed or rejected by Hon'ble Court.

Heard both sides. Perused the bail application and the materials available in the case record and CD.

On perusal of record and CD, I find no injury report. Moreover, I find the detention suffered by the present accused petitioner is sufficient and, as such, I think the bail prayer of the present accused petitioner should be considered and allowed.

Hence, the accused petitioner may be enlarged on bail of Rs.3,000/- with one surety of like amount, subject to the satisfaction of the Ld. CJM, Murshidabad.

Return the CD.

This Criminal Misc. Case is thus disposed of.

D/c by me.

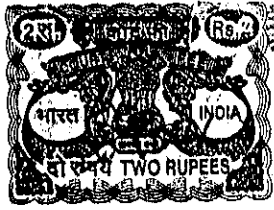
Sd/-
S/J, Msd (I/C)

Sd/-
Sessions Judge, Murshidabad (I/C)



16/05 02.11.16
Order Date 02.11.16
Berhampore P.S.
CJM (Msd)

- 66 - Annex 'B-9'



GR-758/16.
Berhampore P.S. Case no - 155/16 dt-20.2.16

State - vs - Hiru, Halder & other

5/10/16 Seen the prayer of D.O. who prays for bail interrogation of a/cd. Hiru Halder s/o Santosh Halder who is now in J/C at B.C.C. Home.

prayer is allowed

The Superintendent B.C.C. Home is directed to Co-operate with D.O.

Chief Judicial Magistrate
Murshidabad

5/10/16 Seen the prayer of D.O. who prays for Showa arrant of a/cd. Hiru Halder s/o Santosh Halder who is now in J/C at B.C.C. Home. In the mean time D.O. has already seen sample of bail interrogation at B.C.C. Home and recorded his statement.

prayer is allowed

Issue p/w.

To 28/10/16 for production.

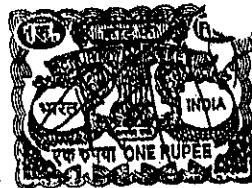
Chief Judicial Magistrate
Murshidabad

Peta No x- 56 dt 16/12/16

H. C. C.
J/C, Copying

21.12.16

67 Ann P 10



Patn No. 90 Dt. 09.02.17

9th day of
Feb 2017

13th day of
Feb 2017

13th day of
Feb 2017

15th day of
Feb 2017

G.R - 985/16.

West Bengal Form No. 27

Seen

SD/-Smt. H. Sundas
A.C.J.M. Kandi, Msd.
20.5.16

FIRST INFORMATION REPORT

(Under Section 154 Cr. P.C.)

1. Dist- Msd. P.S. Kandi Year: 2016 FIR No. 351/16 Date: 19-5-16
2. (i) Act - I.P.C. Sections : 302/201/34 (ii) Act ... x ...
Sections x (iii) Act x Sections ... x ..
(iv) Other Acts & Sections x
3. a) Occurrence of Offence Day : Wednesday Date From: Before
19-5-16 Date to x Time Period ... x Time From
.... x Time to x
- (b) Information received at P.S. Date 19-5-16 Time: 06.15 hrs.
- (c) General Diary / Reference: Entry No(s) 1196 dt. 19/5/16
Time: 06.15 hrs.
4. Type of information : Written complaint.
5. Place of Occurrence : (a) Direction and Distance from P.S.
08 K.M. West Beat No x
- (b) Address : At Calahat More JL No. 67 Anchal Josohari Anukha II
- (c) In case outside limit of the Police Station, then the
Name of the P.S. x District x
6. Complainant/ Informant :
(a) Name : Sisir Pal. (b) Father's Name : Lt. Ananda Gopal Pal.
(c) Date/ Year of Birth x (d) Nationality: Indian.
(e) ~~Passport~~ Passport No x Date of Issue x ...

68



P. 2/

- Place of Issue x (f) Occupation x
(g) Address : Vill Nabadurga. P.S. Burwan. Dist- Murshidabad.
7. Details of known / suspected/ unknown accused with full particulars (Attach separate sheet, if necessary): Unknown miscreants.
8. Reasons for delay in reporting by the Complainant/Informant:
..... x
9. Particulars of properties stolen/ involved (attach separate sheet, if necessary): x
10. Total Value of properties stolen/ involved ... x
11. Inquest Report/U.D. Case No. if any x
12. FIR Contents (Attach separate sheets, if required): The original written complaint of the complt which is treated as FIR is attached herewith.
13. Action taken : Since the above reported reveals commission of offence(s) as mentioned at item No,2, registered the case and took up the investigation/ directed SI Milan Mallick to take up investigation/ refused investigation/ transferred to P.S. x on point of jurisdiction, FIR read over to the Complainant/ informant, admitted to be correctly recorded and a copy given to the Complainant/ informant free of cost.
14. Signature/ Thumb Impression
of the Complainant/ Informant.

-4/- मिनी मल्लिक

Contd. P. 3/

69-



P.3/

15. Date & Time of dispatch to
the Court: On 20-5-16 at
08.00 hrs.

Sd/- (illegible)
19-05-2016
Inspector-in-Charge,
Kandi P.S.
Dist- Murshidabad.

Sd/- S.C.Ghosh ASI
Signature of the Officer-in-Charge
Police Station.

Name : SRIDAM CH. GHOSH
Rank : ASI Of Police No. Kandi. PS
MSD. 19-5-16

DR No. 2977/16

T. BY:

Tolon Dho'
14-02-17

G.R- 935/16.

To
The Inspector in Charge,
Kandi Police Station.

१२/१२/२१

Seen
sd/- Smt. H. Sunda
A.C.T.M
Kandi, Med.
20/5/16.

20/5/16.

ਅਸਿਮ ਸਿੰਘ, ਪਾਕਿਸਤਾਨ ਵਿਚ ਵਸੇ ਹੋਏ ਭਾਰਤੀ (ਜ਼ਾਲਮ)

कार्य
कार्य: मन्त्र
विष्णु-मन्त्र
शिव: शिव
(शिव-मन्त्र)
ब्रह्मा - ब्रह्मा
विष्णु: विष्णु

ବନ୍ଧୁ ମୋର ବନ୍ଧୁ
 ବନ୍ଧୁ ମୋର ବନ୍ଧୁ
 ବନ୍ଧୁ ମୋର ବନ୍ଧୁ

[illegible][illegible]

ଶବ୍ଦରେ କଣ୍ଠସ୍ଵର ସମ୍ପୂର୍ଣ୍ଣ । ଏହା ଦେଶଟି ବାହ୍ୟ ଗାୟନୀ

(ক) প্রথম - ভারী-বায়ু ছিল। জালাস-পালাস-অন্য-সামান্য

ନାହିଁ, ପ୍ରାୟ ୧୫-୨୦ ଡିଗ୍ରୀ ସେଣ୍ଟିଗ୍ରାଡ୍ ହେଉଛି ନିମ୍ନତମ ତାପମାତ୍ରା।
 ତାହାହେଲେ ଏହା ଏକ ସାମାନ୍ୟ ଉଷ୍ମତା।

অক্ষয় কবিতা কে বা অক্ষয়। এই কৃতিকে অনু-জেন
জাইলনা মেয়ে সোনারহারে। জাহান জেনে দিয়া

-ଆମେବ ମହାଜନୁ - ସ୍ତ୍ରୀ ପଦରେ ପୋଷଣକାରୀ କବିତା

[illegible]

कुवम्हा कविछत ।

प्रश्न : शिक्षण पाठ
 विधा : ० अंतराष्ट्रीय व्यापार
 विषय - विदेशी व्यापार - वस्तु

-71-

P-10



9th Day of Feb 2017	13th Day of Feb 2017	13th Day of Feb 2017	15th Day of Feb 2017
------------------------	-------------------------	-------------------------	-------------------------

Order Sheet for Magistrate's Record.

Dist- Murshidabad.

In the Court of Additional Chief Judicial Magistrate, Kandi,
Murshidabad.

Present : Smt. H. Sundas
Additional Chief Judicial Magistrate.
Kandi, Murshidabad.

Case No : G.R. No. 935 / 2016

Ref : Kandi P.S. Case No. 351/16 Dt. 19-5-16 u/s 302/201/34 IPC.

(State Versus Hiru Halder)

Order Dated: 09-1-17 /

Acad 1) Hiru Halder produced today on the strength of
P/W vide Order dt. 29-12-16.

Today is fixed for appr. of I/O with CD for hearing reg.
shown arrest in this case.

Today is fixed for hearing the prayer filed by the I/O
for taking into custody Hiru Halder in connection with this case.

The record is taken up for hearing.

The I/O is present with C.D.

Heard I/O on deck. He submits there is materials in the
C.D. against Hiru Halder and accordingly he be taken into custody
in this case.

Ld. A.P.P raises no objection.

Ld. Advocate for the accused files vokalatnama and filed
another petition praying for bail.

He submits that the accused Hiru Halder is nowhere

-72-

P.2/

connected with this case and this is an old case where there is also an observation of Hon'ble court that the investigation has almost completed and during such course of investigation the name of Hiru Halder did not ~~transpire~~^{transpire}. As such, he submits that this accused is very innocent and only falsely intended to be implicated in this case.

As such he prays for rejecting the prayer.

Considered.

Perused the case record and the entire materials in the C.D.

It appears that the written complaint in this case was lodged by one Sisir Pal against some unknown miscreants. Today the I/O has prayed for taking the accused in custody in connection with this case in view of the only statement of Rajkumar Pal. However, from the entire statement recorded U/s 161 Cr.P.C. it appears that the said Rajkumar Pal has been alone examined in this case U/s 161 Cr.P.C. on 21/05/2016, 12/10/2016 and finally on 11/12/2016. It is on the basis of the statement recorded on 11/12/2016, the I/O has prayed for taking the accused Hiru Halder in custody in this case and shows his involvement in it. Strangely, this court finds that the said Rajkumar Pal has during the examination on 21/05/2016 categorically stated about the accused persons who are involved in this case. Thereafter, he has been examined twice and

- 73 -

6203

P.3/

he has made different statements at different times and this is an offence alleged U/s 302 I.P.C. The I/O has perhaps overlooked the statement of Rajkumar Pal earlier recorded in this case. Apart from this, i.e., the statement recorded on 11/12/2016, there is nothing in the C.D. which reflects the involvement of Hiru Halder till date in connection with this case and this court has no reason to believe that there exists the materials in the C.D. to take the accused person in custody in connection with this case.

Accordingly, the prayer of the I/O is liable to be rejected in this case.

Let a copy of this order be also sent to S.P., Murshidabad for his information and bringing into his notice ~~about~~ about the investigation done by the Police officers under his authority.

Lastly, in view of the same recall P.W. and bail petition being instructuous stands rejected.

Dictated & corrected by me

Sd/- Smt. H. Sundas
A.C.J.M. Kandi.

Sd/- Smt. H. Sundas
Additional Chief Judicial Magistrate,
Kandi, Murshidabad.

T. By
Tolke Shri
14-02-17

Q.R. no - 3512/16

74 - Ann - P11

SEEN
Chief of Police
Beldanga
8260

FIRST INFORMATION REPORT

(Under Section 154 Cr.P.C.)

27

P.S. Beldanga Year 2016 FIR No. 360/16 Date 24.7.16

Sections 147/148/149 (ii) Act Sections 25/27 Arms Act

Sections 302 (iv) Other Acts & Sections 3/4 E.S. Act

Place of Offence Day _____ Date From _____ Date to 24.7.16

Time From _____ Time to at about 05:30 pm

Information received at P.S. Date 24.7.16 Time 20:15 hrs

General Diary Reference: Entry No. (s) 1447 Time 20:15 hrs

Type of information: Written / Oral Anchal no. XIII

Place of Occurrence: (a) Direction and Distance from P.S. 4 K.M West Beat No. J.I. no. 61

(b) Address Majhumpur Village P.S. Beldanga Dist. Murshidabad

(c) If outside limit of the Police Station, then the _____ District _____

Complainant / Informant

(a) Name Din Mahammad

(b) Father's / Husband's Name Lt. Chander Ali

(c) Date / Year of Birth _____ (d) Nationality Indian

(e) Passport No _____ Date of Issue _____ Place of Issue _____

(f) Occupation _____

(g) Address Vill. P.O. Majhumpur P.S. Beldanga Dist. Murshidabad

Details of known / suspected / unknown accused with full particulars (Attach separate sheet, if necessary)

1. Subur Ali S/O Lt. Chander Ali of Village Majhumpur

Schoolpara 2. Sahayansal Sk. @ Vill. S/O Lt. Gopal

3. Tonrail Sk. S/O Egan @ Beldanga

Reasons for delay in reporting by the Complainant / Informant: Continued in separate sheet

Particulars of properties stolen / involved (attach separate sheet, if necessary)

Total Value of properties stolen / involved _____

Inquest Report / U.D. Case No. if any Beldanga P.S. U.D. Case No. 26/16 dt. 24.7.16

FIR Contents (Attach separate sheets, if required): The original written complaint which is attached herewith

Action taken: Since the above reported reveals commission of offence (s) as mentioned at item No. 2, registered the case and took up the investigation / directed SI Ratan Mondal to take up investigation / refused investigation / transferred to P.S. Vill. P.O. investigate on point of jurisdiction, FIR read over to the Complainant / informant, admitted to be correctly recorded and a copy given to the Complainant / informant free of cost.

Signature / Thumb Impression of the Complainant / informant Beldanga P.S. Signature of the Officer in Charge, Police Station

Name SI Ratan Mondal Rank SI of Police

Date & Time of dispatch to the Court 11.5.1

MC Beldanga P.S. MSO dt. 24.7.16

G.R. No. 3512/16
FIRST INFORMATION REPORT
(Under Section 154 Cr.P.C.)

8260

1. Dist. Murshidabad P.S. Beldanga, year 2016 FIR No. 360/16 date :24.7.16
2. (i) I.P.C. Sections 147/148/149 (ii) Act X Section 25/27 Arms Act
(ii) Act Sections X (iv) Other Acts & Sections 3/4 E.S. Act
3. a) Occurrence of Offence Day Date From Date to 24.7.16
Time period X Time From X Time to at about 05.30 hrs
- b) Information received at P.S. date 24.07.16 Time 20.15 hrs.
- c) General Diary Reference Entry No. (s) 1447 Time 20.15 hrs.
4. Type of information : Written/Oral Anchal No. XIII
5. Place of Occurrence (a) Direction and Distance from P.S. 4 K.M. West Beati
No. J.L. No. 61 (b) Address Majhyampur Village P.S. Beldanga, Dist. Murshidabad.
c) In case outside limit of the Police Station, then the
Name of the P.S. District
6. Complainant/Informant
a) Name Din Mahammad
b) Father's/Husband's Name Lt. Chader Ali c) Date/Year of Birth
d) Nationality Indian, e) Passport No. Date of issue
Place of Issue f) Occupation
- g) Address vill. & P.O. Majhyampur P.S. Beldanga, Dist. Murshidabad.
7. Details of known/suspected/unknown accused with full particulars (Attach
separate sheet, if necessary)
(1) Sabur Ali S/o. Lt. Bached Ali of Village Majhyampur Schoolpara
(2) Sahajamal Sk. @ Poto S/o. Lt. Golap (3) Temail Sk. S/o. Ejain @ Bhadu
Continued in separate sheet.
8. Reasons for delay in reporting by the Complainant/Informant :
9. Particulars of properties stolen/involved (attach separate sheet,
if necessary) :
10. Total Value of properties stolen/involved
11. Inquest Report/U.D. Case No. If any Beldanga P.S. U/D. Case No. 26/16
dt. 24.7.16.
12. FIR Contents (Attach separate sheets, if required) : The original
written complaint which is prepared as F.I.R. is attached herewith.
13. Action taken since the above reported reveals commission of offence(s)
as mentioned at item No. 2 registered the case and took up the investi-
gation/directed Sl. Ratan Mandal to take up investigation/refused
investigation-transferred to P.S. Will Pl. investigate on point of
jurisdiction. FIR read over to the Complainant/informant, admitted to be
correctly recorded and a copy given to the complainant/informant free of
cost. Sd/- Illegible. Recorded by me as per order of O/C.
Beldanga P.S. Sd/- Illegible.
10.7.11
14. Signature/Thumb Impression of the Complainant/informant Signature of the Officer in Charge,
Police Station.
15. Date & Time of dispatch to the Court. Name Mrinal Sinha
Rank Sl. of Police
O/C. Beldanga P.S. MSD
Dt. 24.7.16

OR No.
3153/11

- 76 -

SEEN
Chief Justice
Bengal

P-17

Continuation in column No. 7

Ref. Ref. Beldanga P.S case No. 360/16 dt. 24.07.2016 U/S 147/148/149/302 IPC +
25/28 Arms Act. & 3/4 E.S Act.

4) Motiur Rahaman S/O Sahajamal @ Putu 5) Nasiruddin Sk, S/O Lt. Jalaluddin
Sk. 6) Ejain Sk. S/O Lt. Chabed Ali 7) Monirul Sk. S/O Lt. Jehendar all of
Majhyampur Daharpara 8) Khilafat Sk. S/O Lt. Kached Ali 9) Adar Ali S/O Fajar
Ali 10) Mustakim Sk. S/O Lt. Allarekha @ Akhob 11) Azizul Sk. @ Debu S/O Lt.
Fazlul all of majhyampur Schoolpara 12) Manchar Sk. S/O Lt. Chademoni of
Majhyampur Barkholapara all of P.S Beldanga Dist. Murshidabad and others.

For
24.7.16

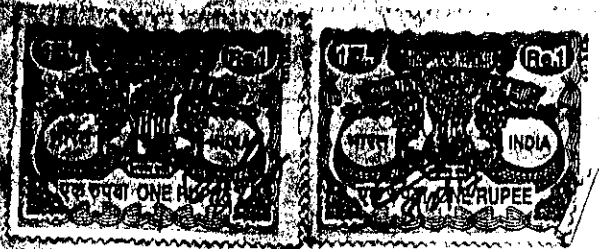
Officer-in-charge
BELDANGA P.S
Murshidabad

Attam Khandar mard
A.S.1 of Adm.
P.S - Beldanga
MSD

১/ কামরুজ্জামান (কুড়া) / শিলা ৩৩. ১১২৪২১১
২/ মোস্তাফিজুর রহমান (কুড়া) / শিলা. ১১২৪২১১
৩/ মোস্তাফিজুর রহমান (কুড়া) / শিলা. ১১২৪২১১
৪/ মোস্তাফিজুর রহমান (কুড়া) / শিলা. ১১২৪২১১
৫/ মোস্তাফিজুর রহমান (কুড়া) / শিলা. ১১২৪২১১
৬/ মোস্তাফিজুর রহমান (কুড়া) / শিলা. ১১২৪২১১
৭/ মোস্তাফিজুর রহমান (কুড়া) / শিলা. ১১২৪২১১
৮/ মোস্তাফিজুর রহমান (কুড়া) / শিলা. ১১২৪২১১
৯/ মোস্তাফিজুর রহমান (কুড়া) / শিলা. ১১২৪২১১
১০/ মোস্তাফিজুর রহমান (কুড়া) / শিলা. ১১২৪২১১
১১/ মোস্তাফিজুর রহমান (কুড়া) / শিলা. ১১২৪২১১
১২/ মোস্তাফিজুর রহমান (কুড়া) / শিলা. ১১২৪২১১

-77-

Ann - SP-11



21.01.17, 06.02.17, 06.02.17, 08.02.17, 08.02.17

ORDER SHEET FOR MAGISTRATES' RECORDS.

DISTRICT : MURSHIDABAD.

In the Court of Chief Judicial Magistrate of Murshidabad at
Berhampore.

Present : Shri P. Mitra,
Ld. Chief Judicial Magistrate,
Murshidabad.

State - Vs - Hiru Halder.

Ref: Beldanga P.S. Case No.-360/16 Dtd.24.7.16.

U/s 147/148/149/302 I.P.C. ,25/27 Arms Act
& 3/4 E.S. Act.

G. R. No.-3512/16.

Order dated:16.1.17.

Seen the prayer of I.O. who prays for shown arrest
of accused Hiru Halder who is now J.C. in c/w Berhampore
P.S. Case No.-155/16 Dtd.20.2.16 U/s 147/148/149/324/325/302
I.P.C. & 25/27 Arms Act.

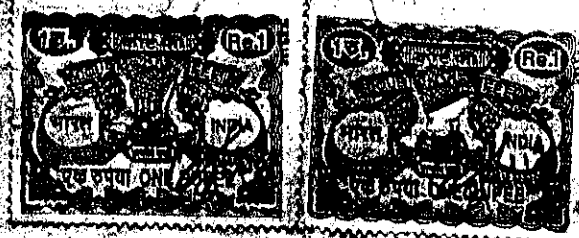
Prayer is allowed.

Issue P/W. To 18.1.17 for production.

sd/ P. Mitra,
Chief Judicial Magistrate,
Murshidabad.

Typed by : Kanni Ray
7.2.2017

78 -
Annex 'B-II'



21.01.17, 06.02.17, 06.02.17, 08.02.17, 08.02.17

ORDER SHEET FOR MAGISTRATES' RECORDS.

DISTRICT : MURSHIDABAD.

In the Court of Chief Judicial Magistrate of Murshidabad at
Berhampore.

Present : Shri P. Mitra,
 Ld. Chief Judicial Magistrate,
 Murshidabad.

State -Vs- Hiru Halder.

Ref: Beldanga P. S. Case No.-360/16 Dtd. 24.7.16.

U/s-147/148/149/302 I.P.C. & 25/27 Arms Act & 3/4 E.S. Act.

G. R. No.-3512/16.

Order dated: 19.01.17:

Received by later.

None production in respect of accd. Hiru Halder.

He is admitted at Berhampore Medical College & Hospital.

Supdt. L. C. C. Home, Berhampore, Murshidabad is directed to
produced the accd. before Ld. C.J.M. Court physically for
P.C. hearing on 24.1.17. I.O. is directed to appear before
Ld. Court with C.D. for hearing. To 24.1.17 for production.

Dtd.-19.1.17: In view of order of Ld. Sessions Judge,

Murshidabad vide C.M.C. No.-131/17 dtd. 20.1.17.

sd/ P. Mitra,
C.J.M.,
Murshidabad.

Typed by: *Kanai Ray*
7.2.2017

79 -

WEST BENGAL HEALTH SECTOR DEVELOPMENT
PROGRAMME
DEPARTMENT OF HEALTH AND FAMILY WELFARE
GOVERNMENT OF WEST BENGAL

INSTRUCTIONS

1. Provisional diagnosis and conditions of the patients to be referred with remark whether referred for investigation, further consultancy at O. P. D., Surgery or emergency.
2. Critically ill patients are to be transported by means of ambulance that may be made available at the hospital, referring the patient. Actual POL expenditure to be charged from the patients except in acute emergency.
3. There will be no need for purchase of a fresh OPD ticket by the referred patient at the referred hospital. The Referral Card provided will serve the purpose.
4. The patient will report directly to the department/unit of the referred hospital without going through Out Patients Department there by minimising loss of time and physical inconvenience.
5. No. OPD ticket will be required to be purchased by the patient on return from the referred hospital. The original Referred Card & Feed Back Card will serve the purpose.

No.

WBHSDP, H & FW DEPT, G O WB
REFERRAL CARD
স্থানান্তরকরণ লিপি

Regd. No./রেজিঃ নং 7810

Date/তারিখ 20.01.17 Time/সময়

Referring Hospital/প্রেরক হাসপাতাল
MSD MCH

Patient's name/রোগীর নাম
Hiru Haldar

Age/বয়স 35 Sex/স্বী/পুরুষ M

Address/ঠিকানা B.C.C.H.

Village/গ্রাম P.O./ডাকঘর

P.S./থানা Dist./জিলা M.S.D.

Clinical Diagnosis (Provisional)/অনুমের রোগের নামঃ
Exertional chest pain under investigation - ECG - wne.

Referred Hospital/গ্রহণকারী হাসপাতাল C.R. - wne.
Cardiology Dept of Tupt. Neg
NRS / SSU

Purpose of Referral/স্থানান্তরকরণের উদ্দেশ্য
TMT
Eucardiography
not done

Investigation / Consultation / Surgery / Emergency
অনুসন্ধান / পরামর্শ / অস্ত্রোপচার / জরুরী বিভাগ

1

by Pam
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1/2 in 1/2 in

20/1/17

Signature / স্বাক্ষর _____
Designation / পদ _____

Date / তারিখ _____ Time / সময় _____

